

European Food Safety Authority (EFSA) – ensuring safe food and animal feed in the European Union

SUMMARY OF:

[Regulation \(EC\) No 178/2002 –general principles and requirements of food law, establishing the European Food Safety Authority and procedures for food safety](#)

[Regulation \(EU\) 2019/1381 –transparency and sustainability of the EU risk assessment in the food chain](#)

WHAT IS THE AIM OF THE REGULATION?

- Regulation (EC) No 178/2002 (the General Food Law Regulation) strengthens the rules on the safety of food and feed in the [European Union](#) (EU).
- It also sets up the [European Food Safety Authority \(EFSA\)](#), which provides support for the scientific testing and evaluation of food and feed.
- The [regulation](#) does not cover production on farms for private use or the handling of food at home.

KEY POINTS

- No foods dangerous to health or unfit for consumption may be put on sale. The following factors are taken into account:
 - the normal conditions under which food is used by the consumer;
 - information provided to the consumer;
 - the effect on health, in the short and long term;
 - cumulative toxic effects;
 - the particular health sensitivities of a specific category of consumers where the food is intended for that category of consumers.
- If any unsafe food or feed is part of a batch, it is assumed that the whole batch is unsafe.
- Food legislation applies at **all stages of the food chain**, from production, processing, transport and distribution to supply. In particular, **food businesses must**:
 - guarantee the **traceability** of food, feed and food-producing animals and any substance intended to be incorporated into food or feed at all stages of production

and distribution;

- immediately **withdraw food or feed from the market**, or **recall** products already supplied, if these are considered to be harmful to health;
 - **inform the appropriate authorities** and consumers where necessary.
- EFSA provides scientific and technical support to the [European Commission](#) and EU [Member States](#) in all areas that have an impact on food safety. It is also responsible for coordinating risk assessments, identifying emerging risks and advising on crisis management.
 - EFSA cooperates with the competent bodies in the Member States that carry out similar tasks to those of the authority and with other scientific bodies established under [EU law](#), in particular the [European Chemicals Agency](#) (ECHA), the [European Medicines Agency](#) (EMA) and the [European Environment Agency](#) (EEA) on:
 - the provision of relevant scientific opinions;
 - the exchange of data and information, including the potential establishment of related data formats and controlled vocabularies to facilitate such an exchange;
 - the development of scientific methodologies for the assessment of chemicals.
 - Where risk is identified following a health risk analysis, Member States and the Commission may adopt provisional precautionary measures consistent with a high level of health protection.
 - The [rapid alert system for food and feed \(RASFF\)](#), involving Member States, the Commission and EFSA, enables information sharing on:
 - measures to restrict the circulation of food or on its withdrawal from the market;
 - action taken to prevent, limit or impose specific conditions on the placing on the market or the eventual use of food or feed;
 - the rejection of a batch of imported food.
 - This information must also be made available to the general public, where appropriate.
 - Where food or feed presents a serious and uncontrollable risk to health or the environment, the Commission's **emergency protective measures** can include suspending trade in or imports of the product. Member States may take similar measures if the Commission fails to take action.
 - Together with EFSA and the Member States, the Commission must draw up a **general crisis-management plan** to cover situations where the standard emergency protective measures are insufficient. Where such a case is identified, the Commission must immediately set up a **crisis unit** to identify the options for protecting human health.
 - The EU also aims to protect consumers against fraudulent or deceptive practices in the food trade, such as food adulteration (e.g. horsemeat in beef products), and provide a basis for consumers to make informed choices about food.

Regulation (EU) 2019/1381 on the transparency and sustainability of the EU risk assessment in the food chain mainly amends Regulation (EC) No 178/2002. It seeks to do the following.

- **Ensure more transparency.** The public will have automatic access to all studies and information submitted in support of any request addressed to EFSA, such as to all studies supporting a request for an authorisation by a food business operator, early on in the risk assessment process. Duly justified confidential information will not be disclosed. Stakeholders and the general public will also be consulted on these submitted studies. The feedback received will allow EFSA to have access to the widest evidence base possible before it delivers its scientific advice.
- **Increase the independence and robustness of submitted scientific studies.** EFSA will be notified, during the pre-submission phase, of all studies commissioned with a view to a future application procedure. This will guarantee that companies applying for authorisations submit all the relevant information and do not withhold unfavourable studies. EFSA will also provide general advice to applicants, in particular [small and medium-sized enterprises](#), prior to the submission of the dossier. The Commission may ask EFSA to commission additional studies for verification purposes in exceptional circumstances of serious controversies or conflicting results. The Commission will also perform fact-finding missions to verify the compliance of laboratories with the applicable standards for carrying out studies submitted to EFSA. The outcome of the fact-finding missions will be presented in an overview report.
- **Strengthen governance and scientific cooperation.** Member States, [civil society](#) and the [European Parliament](#) will be involved in the governance of EFSA by being duly represented in its management board. Member States will encourage the development of EFSA's scientific capacity, for example, by means of joint projects and the sharing of best practices, and will undertake promotion activities to ensure the recruitment of the best independent experts in EFSA's work.
- **Develop comprehensive risk communication.** A general plan for risk communication will be adopted by means of an implementing act to ensure a comprehensive risk communication framework throughout the risk-analysis process, combined with open dialogue amongst all interested parties.

FROM WHEN DOES THE REGULATION APPLY?

Regulation (EC) No 178/2002 has applied since 21 February 2002.

The new rules contained in amending Regulation (EU) 2019/1381 have applied since 27 March 2021.

BACKGROUND

Regulation (EU) 2019/1381 also amends another eight sectoral acts (i.e. acts on specific related sectors), as far as transparency aspects are concerned:

- Directive [2001/18/EC](#) on the [deliberate release into the environment of genetically modified organisms](#);
- Regulation (EC) No [1829/2003](#) on [genetically modified food and feed](#);
- Regulation (EC) No [1831/2003](#) on [feed additives](#);
- Regulation (EC) No [2065/2003](#) on [smoke flavourings](#);
- Regulation (EC) No [1935/2004](#) on [food contact materials](#);
- Regulation (EC) No [1331/2008](#) on the [common authorisation procedure for food additives, food enzymes and food flavourings](#);
- Regulation (EC) No [1107/2009](#) on [plant protection products](#); and
- Regulation (EU) No [2015/2283](#) on [novel foods](#).

For more information, see:

- [Food safety](#) (European Commission).

MAIN DOCUMENT

Regulation (EC) No [178/2002](#) of the European Parliament and of the Council of 28 January 2002 laying down the general principles and requirements of food law, establishing the European Food Safety Authority and laying down procedures in matters of food safety (OJ L 31, 1.2.2002, pp. 1–24).

Successive amendments to Regulation (EC) No 178/2002 have been incorporated into the original text. This [consolidated version](#) is of documentary value only.

Regulation (EU) [2019/1381](#) of the European Parliament and of the Council of 20 June 2019 on the transparency and sustainability of the EU risk assessment in the food chain and amending Regulations (EC) No 178/2002, (EC) No 1829/2003, (EC) No 1831/2003, (EC) No 2065/2003, (EC) No 1935/2004, (EC) No 1331/2008, (EC) No 1107/2009, (EU) 2015/2283 and Directive 2001/18/EC (OJ L 231, 6.9.2019, pp. 1–28).

RELATED DOCUMENTS

Regulation (EU) [2015/2283](#) of the European Parliament and of the Council of 25 November 2015 on novel foods, amending Regulation (EU) No 1169/2011 of the European Parliament and of the Council and repealing Regulation (EC) No 258/97 of the European Parliament and of the Council and Commission Regulation (EC) No 1852/2001 (OJ L 327, 11.12.2015, pp. 1–22).

See [consolidated version](#).

Regulation (EC) No [1107/2009](#) of the European Parliament and of the Council of 21 October 2009 concerning the placing of plant protection products on the market and repealing Council Directives 79/117/EEC and 91/414/EEC (OJ L 309, 24.11.2009, pp. 1–50).

See [consolidated version](#).

Regulation (EC) No [1331/2008](#) of the European Parliament and of the Council of 16 December 2008 establishing a common authorisation procedure for food additives, food enzymes and food flavourings (OJ L 354, 31.12.2008, pp. 1–6).

See [consolidated version](#).

Regulation (EC) No [1935/2004](#) of the European Parliament and of the Council of 27 October 2004 on materials and articles intended to come into contact with food and repealing Directives 80/590/EEC and 89/109/EEC (OJ L 338, 13.11.2004, pp. 4–17).

See [consolidated version](#).

Regulation (EC) No [1831/2003](#) of the European Parliament and of the Council of 22 September 2003 on additives for use in animal nutrition (OJ L 268, 18.10.2003, pp. 29–43).

See [consolidated version](#).

Regulation (EC) No [1829/2003](#) of the European Parliament and of the Council of 22 September 2003 on genetically modified food and feed (OJ L 268, 18.10.2003, pp. 1–23).

See [consolidated version](#).

last update 10.3.2026

Food safety — from farm to fork

SUMMARY OF:

[Regulation \(EC\) No 853/2004 on the hygiene of foodstuffs](#)

WHAT IS THE AIM OF THE REGULATION?

- The [European Union](#) (EU) seeks to ensure food hygiene at all stages of the production process, from farms to processing plants and retailers to the final consumer.
- The regulation and its annexes define a set of **requirements** for the EU that firms working with food must meet in order to ensure that food is safe for consumers.

KEY POINTS

The key principle is that everyone working in the food business must ensure food is dealt with in a hygienic and safe way, i.e. free of contamination from foodborne hazards, at every stage of the production process. This is achieved through:

- good hygiene practices;
- procedures based on the hazard analysis and critical control points (HACCP) principles.

Good hygiene practices

Annex I lays down good hygiene practices applicable during the **primary production stage** (i.e. farming, hunting or fishing) and during the transport, handling and storage of primary products and the transport of live animals.

The good hygiene practices set out in Annex II apply to food operators after primary production (slaughterhouses, processing plants, retailers, etc.) and cover areas such as:

- cleanness of food premises and equipment;
- transport conditions;
- food waste management;
- water supply;
- personal hygiene and training of food workers;

- wrapping and packaging;
- heat treatment processes.

Procedures based on the HACCP principles

Businesses in the food sector (except those involved in primary production) should apply procedures based on HACCP principles in line with the general principles of food hygiene of the [Codex Alimentarius](#). These principles include:

- identifying any hazards that must be controlled;
- identifying the critical control points and establishing critical limits;
- establishing and implementing effective monitoring;
- establishing corrective actions when needed;
- establishing procedures to verify that HACCP procedures are working effectively;
- establishing documents and records to demonstrate the effective application of the HACCP procedures.

The development of national and EU guidance to implement the good hygiene practices and HACCP procedures in a specific food sector is encouraged.

Other requirements of Regulation (EC) No 853/2004

Where required by national or EU legislation, businesses in the food sector must be **approved** and all premises **registered** with the appropriate authority, allowing this authority to visit them and verify compliance with the hygiene requirements.

Food **imported** into the EU and **exported** food of animal origin must comply with EU standards or their equivalent, as well as any requirements which the importing country may impose.

Closely related EU legislation

Regulation (EC) No [853/2004](#) (see [summary](#)) sets out additional specific hygiene rules for food of animal origin, for example meat, fishery products and cheeses.

Regulation (EC) No [178/2002](#) on the general principles and requirements of EU food law (see [summary](#)), also supplements the hygiene requirements by laying down obligations on the **traceability**¹ of food and requiring that when discovering that a food consignment presents a serious health risk, a food business must immediately withdraw that food from the market and inform users and the relevant authority.

Amendments to Regulation (EC) No 852/2004

The regulation has been amended several times, including by the following regulations.

- Regulation (EC) No [1019/2008](#) clarifies the rules regarding the water used for whole fishery products and for the external washing of live bivalve molluscs, echinoderms, tunicates and marine gastropods.
- Regulation (EU) No [579/2014](#) grants exceptions from certain rules in Regulation (EC) No 852/2004 to allow liquid oils or fats intended for or likely to be used for human consumption to be transported in seagoing vessels which are not reserved for the transport of foodstuffs, subject to certain conditions which ensure the protection of public health and the safety and wholesomeness of the foodstuffs concerned.
- Regulation (EU) [2021/382](#), which concerns food allergen management, redistribution of food and food safety culture, amends Annexes I and II of Regulation (EC) No 852/2004 to take into account certain advice from the European Food Safety Authority, and the adoption of new standards by the Codex Alimentarius Commission. These changes seek to:
 - include requirements introducing good hygiene practices to prevent or limit the presence of substances causing allergies or intolerances;
 - lay down certain requirements to promote and facilitate redistribution of food (e.g. food donations), while guaranteeing its safety for consumers;
 - include general requirements on food safety culture to increase awareness and improve the practices of food establishment employees.

FROM WHEN DOES THE REGULATION APPLY?

It has applied since 1 January 2006.

BACKGROUND

For more information, see:

- [Food hygiene](#) (European Commission).

KEY TERMS

1. **Traceability.** The ability to trace and follow a food or food-producing animal through all stages of production, processing and distribution.

MAIN DOCUMENT

Regulation (EC) No [852/2004](#) of the European Parliament and of the Council of 29 April 2004 on the hygiene of foodstuffs (OJ L 139, 30.04.2004, pp. 1–54). Text republished in [corrigendum](#) (OJ L 226, 25.6.2004, pp. 3–21).

Successive amendments and corrections to Regulation (EC) No 852/2004 have been incorporated into the original text. This [consolidated version](#) is of documentary value only.

RELATED DOCUMENTS

Commission Regulation (EC) No [2073/2005](#) of 15 November 2005 on microbiological criteria for foodstuffs (OJ L 338, 22.12.2005, pp. 1–26).

See [consolidated version](#).

Regulation (EC) No [853/2004](#) of the European Parliament and of the Council of 29 April 2004 laying down specific hygiene rules for food of animal origin (OJ L 139, 30.4.2004, pp. 55–205). Text republished in [corrigendum](#) (OJ L 226, 25.6.2004, pp. 22–82).

See [consolidated version](#).

Regulation (EC) No [178/2002](#) of the European Parliament and of the Council of 28 January 2002 laying down the general principles and requirements of food law, establishing the European Food Safety Authority and laying down procedures in matters of food safety (OJ L 31, 1.2.2002, p. 1–24).

See [consolidated version](#).

last update 25.10.2021

Hygiene rules for food of animal origin

SUMMARY OF:

[Regulation \(EC\) No 853/2004 laying down specific hygiene rules for food of animal origin](#)

WHAT IS THE AIM OF THE REGULATION?

- It sets out [European Union](#) (EU) rules to be followed by food business operators on the hygiene of food of animal origin, such as meat, fishery products and dairy products.
- It complements Regulation (EC) No [852/2004](#), which lays down general rules on the hygiene of foodstuffs (see [summary](#)).

KEY POINTS

The main purpose of the regulation is to lay down specific hygiene requirements for food of animal origin, detailed in its Annex III (see below).

Food business operator general obligations

- Operators must use only **potable water** (or 'clean water' in some circumstances) to remove surface contamination, unless alternatives are approved by the [European Commission](#).
- Products must be prepared and handled in establishments which need to be at least **registered**, but often approved.
- Products must have a **health mark** or other approved identification mark, as described in Annex II.
- Products **from outside the EU** must satisfy at least EU requirements, demonstrated by the listing of authorised countries and establishments; in addition, products must be **accompanied by certificates**.
- Special rules apply in Finland and Sweden in relation to salmonella for some meats, poultry and eggs.

Annex III sets out specific rules for each category of product.

Meat, including domestic ungulates (bovine, porcine, ovine and caprine species); poultry and lagomorphs (farmed birds, rabbits, hares and rodents); farmed and wild game; minced meat,

meat preparations and mechanically separated/recovered meat; and meat products. The rules include requirements for:

- transporting live animals to slaughterhouses;
- slaughterhouses and cutting plants;
- slaughter hygiene and hygiene during cutting and boning;
- emergency slaughter (outside slaughterhouses) and slaughter on the farm;
- temperature requirements during processing and storage;
- training of hunters in health and hygiene;
- handling of wild game (large and small).

Live bivalve molluscs, such as oysters, mussels, clams, cockles and scallops. Specific requirements in Annex III include:

- being sold via a dispatch centre;
- being applied with an identification mark and dated label;
- being accompanied by a registration document containing purification information (where applicable);
- being harvested from officially classified production areas;
- being purified using permitted treatments only;
- being protected from crushing, abrasion or vibration;
- not being exposed to extreme temperatures; and
- meeting minimum health standards for biotoxin levels.

Fishery products, seawater and freshwater fish, including crustaceans and molluscs, whether wild or farmed. The rules apply to thawed, unprocessed fishery products and fresh fishery products. Among others, products must meet requirements for:

- fishing, freezer and factory vessels;
- hygienic and careful handling and landing procedures;
- control of parasites;
- cooking, cooling, shelling and shucking of crustaceans and molluscs;
- health standards and freshness;
- toxins harmful to humans; and
- wrapping, packaging, storage and transport.

Raw milk and milk products must come from animals that are:

- in good general health;

- showing no symptoms of infectious diseases communicable to humans through milk; and
- from herds free from brucellosis and tuberculosis.

There are also requirements for:

- premises and equipment;
- hygiene during milking, collection and transport;
- temperature and heat treatment; and
- wrapping, packaging, labelling and identification marking.

Eggs and egg products must be:

- kept clean, dry, in an odour-free environment, protected from shocks and direct sun;
- stored and transported at a temperature suitable for optimal conservation;
- delivered to the consumer within 21 days of laying.

Establishments must be laid out and equipped to ensure the following operations are separated:

- washing, drying and disinfecting dirty eggs, where carried out;
- breaking eggs, collecting their contents and removing parts of shells and membranes; and
- any other operation.

Additional requirements for egg products include the following:

- eggs must not be broken unless they are clean and dry;
- cracked eggs must be processed as soon as possible;
- eggs other than those of hens, turkeys or guinea fowl must be handled and processed separately;
- egg contents for human consumption may not be obtained by centrifuging or crushing.

Other food of animal origin

Annex III also contains rules applying to:

- frogs' legs and snails;
- rendered animal fats and greaves (the protein-containing residue of rendering);
- treated stomachs, bladders and intestines;
- gelatine;
- collagen; and

- highly refined chondroitin sulphate, hyaluronic acid, other hydrolysed cartilage products, chitosan, glucosamine, rennet, isinglass and amino acids.

Delegated and implementing powers of the Commission

The regulation gives the Commission the power to adapt it through the adoption of [delegated acts](#) when justified by new scientific information or practical experience gained.

FROM WHEN DOES THE REGULATION APPLY?

It has applied since 1 January 2006.

BACKGROUND

For more information, see:

- [Food hygiene](#) (European Commission).

MAIN DOCUMENT

Regulation (EC) No [853/2004](#) of the European Parliament and of the Council of 29 April 2004 laying down specific hygiene rules for food of animal origin (OJ L 139, 30.4.2004, pp. 55–205). Text republished in [corrigendum](#) (OJ L 226, 25.6.2004, pp. 22–82).

Successive amendments to Regulation (EC) No 853/2004 have been incorporated into the original text. This [consolidated version](#) is of documentary value only.

RELATED DOCUMENTS

Regulation (EU) [2017/625](#) of the European Parliament and of the Council of 15 March 2017 on official controls and other official activities performed to ensure the application of food and feed law, rules on animal health and welfare, plant health and plant protection products, amending Regulations (EC) No 999/2001, (EC) No 396/2005, (EC) No 1069/2009, (EC) No 1107/2009, (EU) No 1151/2012, (EU) No 652/2014, (EU) 2016/429 and (EU) 2016/2031 of the European Parliament and of the Council, Council Regulations (EC) No 1/2005 and (EC) No 1099/2009 and Council Directives 98/58/EC, 1999/74/EC, 2007/43/EC, 2008/119/EC and 2008/120/EC, and repealing Regulations (EC) No 854/2004 and (EC) No 882/2004 of the European Parliament and of the Council, Council Directives 89/608/EEC, 89/662/EEC, 90/425/EEC, 91/496/EEC, 96/23/EC, 96/93/EC and 97/78/EC and Council Decision 92/438/EEC (Official Controls Regulation) (OJ L 95, 7.4.2017, pp. 1–142).

See [consolidated version](#).

Commission Regulation (EC) No [2074/2005](#) of 5 December 2005 laying down implementing measures for certain products under Regulation (EC) No 853/2004 of the European Parliament and of the Council and for the organisation of official controls under Regulation (EC) No 854/2004 of the European Parliament and of the Council and Regulation (EC) No 882/2004 of the European Parliament and of the Council, derogating from Regulation (EC) No 852/2004 of the European Parliament and of the Council and amending Regulations (EC) No 853/2004 and (EC) No 854/2004 (OJ L 338, 22.12.2005, pp. 27–59).

See [consolidated version](#).

Regulation (EC) No [852/2004](#) of the European Parliament and of the Council of 29 April 2004 on the hygiene of foodstuffs (OJ L 139, 30.4.2004, pp. 1–54). Text republished in [corrigendum](#) (OJ L 226, 25.6.2004, pp. 3–21).

See [consolidated version](#).

last update 9.11.2024

Labelling of foodstuffs

SUMMARY OF:

[Regulation \(EU\) No 1169/2011 on providing food information to consumers](#)

WHAT IS THE AIM OF THE REGULATION?

- It seeks to **guarantee consumers** their **right to information** by establishing the general principles, requirements and responsibilities for the **labelling of foodstuffs** they consume.
- It provides sufficient flexibility to respond to future developments in the food sector.
- It merges the previous legislation, Directives [2000/13/EC](#) on the labelling of foodstuffs and [90/496/EEC](#) on nutritional labelling.

KEY POINTS

Scope

- The legislation applies to businesses at all stages of the food chain and to all foods intended for final consumption. This includes food delivered by or supplied to mass caterers.

Responsibility to provide information

- Responsibility for providing the necessary information, and ensuring it is accurate, lies with the manufacturer marketing the food under their name. If they are based outside the [European Union](#) (EU), it lies with the importer.

Mandatory information

- Certain information is **mandatory**. This includes:
 - the food's name
 - a list of ingredients
 - net quantity

- a use-by date
 - instructions for use, if necessary
 - the operator's name and address
 - a nutrition declaration.
- The **general rule** is that the **indication of the country of origin or place of provenance** is mandatory **where failure to indicate this might mislead the consumer** as to the true country of origin or place of provenance of the food. This is particularly the case if the information accompanying the food or the label as a whole would otherwise imply that the food has a different country of origin or place of provenance.
 - Origin labelling must be provided for **fresh, chilled and frozen meat of swine, sheep, goats and poultry**. Separate EU-level mandatory origin rules exist for foods such as [honey](#) (Directive [2001/110/EC](#)), [fruit and vegetables](#) and [olive oil](#) (Regulation (EU) No [1308/2013](#)), [fish](#) (Regulation (EU) No [1379/2013](#)) and [beef and beef products](#) (Regulation (EC) No [1760/2000](#)).
 - The mandatory information must be available at **no extra cost** to consumers who use **distance selling** to buy food, before they make their purchase.
 - The actual **alcoholic strength** must be given for any drinks with more than 1.2% by volume of alcohol.
 - Additional mandatory information must be given for **certain types of foods**, such as those containing sweeteners, ammonium salt or with a high caffeine count.
 - The **net quantity** of food and liquids must be expressed in litres, centilitres, millilitres, kilograms or grams.
 - Certain foods are **exempt** from the mandatory nutrition declaration, such as herbs and spices, flavourings and herbal teas.
 - Other foods — notably fresh fruit and vegetables, carbonated water, vinegars, and dairy items like cheese, butter, cream and fermented milk — do not need a list of ingredients.
 - Food information should not mislead the public, particularly by suggesting it possesses special characteristics or effects it does not have. It should be accurate, clear and easy for the consumer to understand.

The [European Commission](#) adopted **Implementing Regulation (EU) [2018/775](#)**, which builds on Regulation (EU) No 1169/2011's Article 26(3) by laying down detailed rules for indicating the **country of origin or place of provenance** of the **primary ingredient of a food**. In force since 1 April 2020, this regulation requires that the country of origin or place of provenance of the primary ingredient be indicated on the label if it is not the same as the given country of origin or the given place of provenance of the food. It also sets rules regarding the minimum font size and the positioning of this label.

In 2018, the Commission issued a [notice](#) on questions and answers on the application of Regulation (EU) No 1169/2011 to assist food business operators and national authorities in

applying the regulation.

In 2020, the Commission issued a [notice](#) providing guidelines for food business operators and national authorities on applying the rules regarding labelling when the country of origin or place of provenance of a food is given and it is not the same as that of its primary ingredient, the country of origin or place of provenance.

FROM WHEN DOES THIS REGULATION APPLY?

It has applied since 13 December 2014, with the exception of the introduction of a nutrition declaration (from 13 December 2016) and the specific requirements concerning the designation of 'minced meat' (1 January 2014), and the indication of the primary ingredient (1 April 2020).

BACKGROUND

The free movement of safe and wholesome food in the EU is of major benefit to the public's health and well-being and is an essential feature of the single market. In addition to guaranteeing a high level of health protection, EU law ensures that consumers have appropriate information to make informed choices in the food they buy and eat.

For further information, see:

- [Food information to consumers](#) (European Commission).

MAIN DOCUMENT

Regulation (EU) No [1169/2011](#) of the European Parliament and of the Council of 25 October 2011 on the provision of food information to consumers, amending Regulations (EC) No 1924/2006 and (EC) No 1925/2006 of the European Parliament and of the Council, and repealing Commission Directive 87/250/EEC, Council Directive 90/496/EEC, Commission Directive 1999/10/EC, Directive 2000/13/EC of the European Parliament and of the Council, Commission Directives 2002/67/EC and 2008/5/EC and Commission Regulation (EC) No 608/2004 (OJ L 304, 22.11.2011, pp.18–63).

Successive amendments to Regulation (EC) No 1169/2011 have been incorporated in the original text. This [consolidated version](#) is of documentary value only.

RELATED DOCUMENTS

Commission [notice](#) on the application of the provisions of Article 26(3) of Regulation (EU) No 1169/2011 (OJ C 32, 31.1.2020, pp. 1–8).

Commission [notice](#) on questions and answers on the application of Regulation (EU) No 1169/2011 of the European Parliament and of the Council on the provision of food information to consumers (OJ C 196, 8.6.2018, pp. 1–14).

Commission Implementing Regulation (EU) [2018/775](#) of 28 May 2018 laying down rules for the application of Article 26(3) of Regulation (EU) No 1169/2011 of the European Parliament and of the Council on the provision of food information to consumers, as regards the rules for indicating the country of origin or place of provenance of the primary ingredient of a food (OJ L 131, 29.5.2018, pp. 8–11).

See [consolidated version](#).

Regulation (EU) No [1308/2013](#) of the European Parliament and of the Council of 17 December 2013 establishing a common organisation of the markets in agricultural products and repealing Council Regulations (EEC) No 922/72, (EEC) No 234/79, (EC) No 1037/2001 and (EC) No 1234/2007 (OJ L 347, 20.12.2013, pp. 671–854).

See [consolidated version](#).

Regulation (EU) No [1379/2013](#) of the European Parliament and of the Council of 11 December 2013 on the common organisation of the markets in fishery and aquaculture products, amending Council Regulations (EC) No 1184/2006 and (EC) No 1224/2009 and repealing Council Regulation (EC) No 104/2000 (OJ L 354, 28.12.2013, pp. 1–21).

See [consolidated version](#).

Council Directive [2001/110/EC](#) of 20 December 2001 relating to honey (OJ L 10, 12.1.2002, pp. 47–52).

See [consolidated version](#).

Regulation (EC) No [1760/2000](#) of the European Parliament and of the Council of 17 July 2000 establishing a system for the identification and registration of bovine animals and regarding the labelling of beef and beef products and repealing Council Regulation (EC) No 820/97 (OJ L 204, 11.8.2000, pp. 1–10).

See [consolidated version](#).

last update 24.11.2021

Nutrition and health claims made on foods

SUMMARY OF:

[Regulation \(EC\) No 1924/2006 on nutrition and health claims made on foods](#)

WHAT IS THE AIM OF THE REGULATION?

- It seeks to regulate the claims* on foods labelled and advertised in the European Union (EU).
- It aims to ensure that nutrition claims* and health claims* on food labels and in presentations and advertising are clear and based on evidence that is generally accepted by the scientific community.
- There is a wide range of substances, such as vitamins, minerals, amino acids, essential fatty acids, fibre and herbal extracts, with a nutritional or physiological effect that might be present in a food and be the subject of a claim.
- The regulation seeks to:
 - ensure a high level of consumer protection;
 - give the consumer the necessary information to make choices in full knowledge of the facts; and
 - create equal conditions of competition for the food industry.

KEY POINTS

The [European Commission](#) must draw up nutrient* profiles and conditions for the use of nutrition and health claims on foods, taking into account:

- the **quantities of nutrients and other substances*** contained in the food, such as:
 - fatty acids,
 - saturated fatty acids,
 - trans-fatty acids,
 - sugars, and
 - salt;
- the **role and importance of the food** in the diet in general or risk groups such as children;
- the **presence of nutrients** scientifically recognised as having an effect on health.

Health claims should not:

- be false, ambiguous or misleading;
- give rise to doubt about the safety or nutritional adequacy of other foods;

- encourage excess consumption;
- suggest that a balanced and varied diet cannot provide appropriate quantities of nutrients;
- make suggestions that health could be affected by not consuming the food;
- refer to a rate or amount of weight loss;
- refer to recommendations of individual health professionals.

The use of nutrition and health claims will only be allowed if the **presence, absence or reduced content** in a food of a substance has been shown to have a **beneficial effect**, as established by **accepted scientific data**. Such substances must be in quantities that can be reasonably consumed and in an amount to give the desired effect.

Health claims will only be allowed if the following information is on the label:

- the target population for the claim;
- a statement of the importance of a varied and balanced diet and a healthy lifestyle;
- the quantity and pattern of consumption needed to obtain the claimed beneficial effect;
- a statement aimed at persons who should avoid consuming the food (e.g. pregnant women);
- a warning for products likely to present a health risk if consumed to excess;
- where reduced risk of disease is claimed, a statement that the disease has multiple risk factors and altering one of these may or may not have a beneficial effect;
- any other restrictions or directions for use.

Health claims based on generally accepted scientific data, well understood by the average consumer, may be exempted from the authorisation process.

Drinks containing more than 1.2 % by volume of alcohol must not bear any health or nutrition claims other than one referring to the reduction in the alcohol or energy content.

Regulation (EU) No [432/2012](#) provides for the list of permitted health claims, other than those related to the reduction of disease risk and to children's development and health. This regulation has applied since 14 December 2012 and is regularly amended to update the list of newly authorised health claims.

Application for authorisation

Any manufacturer may request the inclusion of a new claim to the permitted list by submitting an application to any EU country. The latter forwards it to the [European Food Safety Authority](#) (EFSA) and the Commission then takes a decision on the use of the claim based on the EFSA's scientific opinion.

FROM WHEN DOES THE REGULATION APPLY?

It has applied since 1 July 2007.

BACKGROUND

For more information, see:

- [‘Nutrition and health claims’](#) on the European Commission's website
- [‘EU register of nutrition and health claims made on foods’](#) on the European Commission's website

- [Commission guidance](#) on the implementation of Regulation (EC) No 1924/2006 (2007)
- [Guidelines](#) for the implementation of specific conditions for health claims laid down in Article 10 of Regulation (EC) No 1924/2006

* KEY TERMS

Claim: any message or representation, which is not mandatory under EU or national legislation, including pictorial, graphic or symbolic representation in any form that states, suggests or implies that a food has particular characteristics.

Nutrition claim: any claim that states, suggests or implies that a food has particular beneficial nutritional properties due to:

- the energy (calorific value) that it:
 - provides,
 - provides at a reduced or increased rate, or
 - does not provide; and/or
- the nutrients or other substances that it:
 - contains,
 - contains in reduced or increased proportions, or
 - does not contain.

Health claim: any claim that states, suggests or implies that a relationship exists between a food category, a food or one of its constituents and health.

Nutrient: protein, carbohydrate, fat, fibre, sodium, vitamins and minerals listed in the annex to Regulation (EU) No 1169/2011, and substances that belong to or are components of one of those categories.

Other substance: a substance other than a nutrient that has a nutritional or physiological effect.

MAIN DOCUMENT

Regulation (EC) No [1924/2006](#) of the European Parliament and of the Council of 20 December 2006 on nutrition and health claims made on foods (OJ L 404, 30.12.2006, pp. 9-25)

Successive amendments to Regulation (EC) No 1924/2006 have been incorporated in the original text. This [consolidated version](#) is of documentary value only.

RELATED ACTS

Commission Regulation (EC) No [353/2008](#) of 18 April 2008 establishing implementing rules for applications for authorisation of health claims as provided for in Article 15 of Regulation (EC) No 1924/2006 of the European Parliament and of the Council (OJ L 109 of 19.4.2008, pp. 11-16)

Commission Regulation (EU) No [432/2012](#) of 16 May 2012 establishing a list of permitted health claims made on foods, other than those referring to the reduction of disease risk and to children's development and health (OJ L 136, 25.5.2012, pp. 1-40). See [consolidated version](#).

Commission Implementing Decision [2013/63/EU](#) of 24 January 2013 adopting guidelines for the implementation of specific conditions for health claims laid down in Article 10 of Regulation (EC) No 1924/2006 (OJ L 22, 25.1.2013, pp. 25-28)

Vitamins and minerals

SUMMARY OF:

[Regulation \(EC\) No 1925/2006 — rules on the addition of vitamins and minerals and some other substances to foods](#)

WHAT IS THE AIM OF THE REGULATION?

The regulation:

- sets out the EU's rules concerning the addition of vitamins, minerals and some other substances to foods;
- harmonises the different rules in force in EU countries to ease trade in foods within the EU and to improve consumer protection;
- sets out the list of vitamins and minerals which may be added to foods;
- sets out rules for additional labelling to provide consumers with better information on the nutrients added to foods.

KEY POINTS

Scope

The regulation covers vitamins, minerals and some other substances which are added to foods. It applies to:

- [foods for particular nutritional uses](#);
- [new foods and new food ingredients](#);
- [genetically modified foods](#);
- [food additives](#) and [flavourings](#);
- [wine-making practices and processes](#).

It does not apply to food supplements covered by [Directive 2002/46/EC](#).

It lists vitamins and minerals which may be added to foods.

Only vitamins and/or minerals listed in Annex I, in the form detailed in Annex II, may be added to foods, subject to the rules laid down in the regulation.

The lists may be modified taking account of the opinion of the [European Food Safety Authority \(EFSA\)](#).

Labelling

Nutritional labelling of products to which vitamins and minerals have been added and which are covered by the regulation is compulsory. It must contain the following information:

- the total amounts of vitamins and minerals where they are added to a food;
- the amount of protein, carbohydrate, sugars, fat, saturates, fibre and sodium (in accordance with Regulation (EU) No 1169/2011 on [food labelling](#));
- the energy value of the product.

The labelling, presentation and advertising of foods to which vitamins and minerals have been added:

- shall not mislead or deceive the consumer about their nutritional value;
- shall not include any mention stating or implying that a balanced and varied diet is not an adequate source of nutritional substances.

Maximum and minimum levels

Adding vitamins and minerals voluntarily to foods can contribute to achieving adequate intakes of these substances and reduce the risk of deficiencies.

However, excessive intakes of vitamins and minerals may have adverse effect on health. For this reason, the regulation provides for the setting of maximum amounts of vitamins and minerals to be added to foods.

The maximum amounts take account of:

- the upper safe levels for vitamins and minerals following a scientific risk assessment;
- the potential intake of vitamins and minerals from other foods; and
- the reference intakes of vitamins and minerals recommended for the population.

If necessary, it also takes account of the contribution of individual products to the overall diet of the population and of the nutrient profile established in accordance with [Regulation \(EC\) 1924/2006](#).

Adding a vitamin or a mineral to a food shall result in at least a significant amount of that vitamin or that mineral in the food, where this amount has been defined according to the Annex

to Regulation (EU) No 1169/2011.

Prohibitions and restrictions

Vitamins and minerals may not be added to:

- unprocessed foodstuffs, including fruit, vegetables, meat, poultry and fish;
- beverages containing more than 1.2 % by volume of alcohol, except in specific cases and provided that no nutrition or health claim is made.

The regulation allows for a procedure to prohibit or restrict the use of substances other than vitamins or minerals which have a nutritional or physiological effect¹. For some substances, these procedures are accompanied by other specific European control measures. EU countries can submit a request to the [European Commission](#), providing scientific evidence allowing it to classify a particular product in the regulation's Annex III (Substances whose use in foods is prohibited, restricted or under Community scrutiny). [Implementing Regulation \(EU\) No 307/2012](#) clarifies the conditions for submitting such a request, as well as laying down the nature of the evidence to accompany the request.

The [Standing Committee on Plants, Animals, Food and Feed \(PAFF\)](#) assists the Commission.

FROM WHEN DOES THE REGULATION APPLY?

It has applied since 1 July 2007.

KEY TERMS

1. **Physiological effect:** an effect on the human body.

MAIN DOCUMENT

Regulation (EC) No [1925/2006](#) of the European Parliament and of the Council of 20 December 2006 on the addition of vitamins and minerals and of certain other substances to foods (OJ L 404, 30.12.2006, pp. 26-38)

Successive amendments to Regulation (EC) No 1925/2006 have been incorporated into the original document. This [consolidated version](#) is of documentary value only.

RELATED DOCUMENTS

Regulation (EU) No [609/2013](#) of the European Parliament and of the Council of 12 June 2013 on food intended for infants and young children, food for special medical purposes, and total diet replacement for weight control and repealing Council Directive 92/52/EEC, Commission Directives 96/8/EC, 1999/21/EC, 2006/125/EC and 2006/141/EC, Directive 2009/39/EC of the European Parliament and of the Council and Commission Regulations (EC) No 41/2009 and (EC) No 953/2009 (OJ L 181, 29.6.2013, pp. 35-56)

See [consolidated version](#).

[Commission Implementing Regulation \(EU\) No 307/2012](#) of 11 April 2012 establishing implementing rules for the application of Article 8 of Regulation (EC) No 1925/2006 of the European Parliament and of the Council on the addition of vitamins and minerals and of certain other substances to foods (OJ L 102, 12.4.2012, pp. 2–4)

[Regulation \(EU\) No 1169/2011](#) of the European Parliament and of the Council of 25 October 2011 on the provision of food information to consumers, amending Regulations (EC) No 1924/2006 and (EC) No 1925/2006 of the European Parliament and of the Council, and repealing Commission Directive 87/250/EEC, Council Directive 90/496/EEC, Commission Directive 1999/10/EC, Directive 2000/13/EC of the European Parliament and of the Council, Commission Directives 2002/67/EC and 2008/5/EC and Commission Regulation (EC) No 608/2004 (OJ L 304, 22.11.2011, pp. 18-63)

See [consolidated version](#).

[Regulation \(EC\) No 1334/2008](#) of the European Parliament and of the Council of 16 December 2008 on flavourings and certain food ingredients with flavouring properties for use in and on foods and amending Council Regulation (EEC) No 1601/91, Regulations (EC) No 2232/96 and (EC) No 110/2008 and Directive 2000/13/EC (OJ L 354, 31.12.2008, pp. 34–50)

See [consolidated version](#).

[Regulation \(EC\) No 1333/2008](#) of the European Parliament and of the Council of 16 December 2008 on food additives (OJ L 354, 31.12.2008, pp. 16–33)

See [consolidated version](#).

[Regulation \(EC\) No 1924/2006](#) of the European Parliament and of the Council of 20 December 2006 on nutrition and health claims made on foods (OJ L 404, 30.12.2006, pp. 9-25)

See [consolidated version](#).

[Regulation \(EC\) No 1829/2003](#) of the European Parliament and of the Council of 22 September 2003 on genetically modified food and feed (OJ L 268, 18.10.2003, pp. 1-23)

See [consolidated version](#).

[Directive 2002/46/EC](#) of the European Parliament and of the Council of 10 June 2002 on the approximation of the laws of the Member States relating to food supplements (OJ L 183,

12.7.2002, pp. 51-57)

See [consolidated version](#).

[Regulation \(EC\) No 258/97](#) of the European Parliament and of the Council of 27 January 1997 concerning novel foods and novel food ingredients (OJ L 43, 14.2.1997, pp. 1-6)

See [consolidated version](#).

last update 28.9.2017

Authorisation procedure for additives, enzymes and flavourings

SUMMARY OF:

[Regulation \(EC\) No 1331/2008 establishing a common authorisation procedure for food additives, food enzymes and food flavourings](#)

[Regulation \(EU\) 2019/1381 on the transparency and sustainability of the EU risk assessment in the food chain](#)

WHAT IS THE AIM OF THE REGULATIONS?

- Regulation (EC) No 1331/2008 introduces a harmonised, effective, fast and transparent authorisation procedure for **food additives**, **food enzymes** and **food flavourings** in the EU, aiming to facilitate the free movement of food while assuring consumer health. It does not apply to smoke flavourings.
- The procedure is based on a risk assessment by the [European Food Safety Authority](#) (EFSA), set up under Regulation (EC) No [178/2002](#), and leads to the updating of a **Community (EU) list** for each of the 3 categories of substance.
- Amending Regulation (EU) 2019/1381 introduces new rules on transparency and confidentiality in risk assessment.

KEY POINTS

Common procedure

- Only substances authorised for the EU market are on the **EU list**, which is updated on the initiative of the [European Commission](#), of an EU country or of another interested party through an official application.
- The Commission forwards applications for substances to be included on the list to EFSA for risk assessment (mandatory where there could be an effect on human health). EFSA must normally respond within 9 months. In justified cases where EFSA requests additional information from applicants, the period may be extended. EFSA makes public, under the 2019 amendment, any additional information supplied by the applicant.
- The Commission issues a draft regulation updating the EU list within 9 months of receiving EFSA's opinion.

- The process may be halted by the Commission at any time. In urgent cases, there are special arrangements for adding, removing or changing conditions for substances on the list.
- The Commission is assisted by the [Standing Committee on Plants, Animals, Food and Feed](#) in updating the EU list.

Implementation

The Commission had 2 years from the adoption of the regulations on additives, enzymes and flavourings, after consultation with EFSA on risk assessment, to finalise how it would deal with applications, including:

- content, drafting and presentation;
- checking the validity of applications;
- the type of information to be included.

Transparency

- Under Regulation (EC) No 1331/2008, EFSA ensures the transparency of its activities in accordance with Regulation (EC) No 178/2002.
- Amending Regulation (EU) 2019/1381 introduces new rules on transparency requiring EFSA, where the Commission requests its opinion, to make the application public without delay, including relevant supporting information and additional information supplied by the applicant, as well as its scientific opinions. EFSA makes public any request for its opinion as well as any extension of time limits for its work.

Confidentiality

- Under Regulation (EC) No 1331/2008, applicants may request certain parts of their applications to be treated as confidential, along with verifiable justification.
- Amending Regulation (EU) 2019/1381 allows EFSA to also grant confidentiality for the following, where applicable, if the applicant demonstrates that disclosure could significantly harm its interests (except for information relevant to the assessment of safety):
 - information provided on material used to manufacture the substance concerned;
 - information on the materials or products in which the applicant intends to use the substance;
 - detailed analytical information on the variability and stability of individual production batches.

Emergencies

If there is an emergency connected with a substance on the list, the Commission initiates EFSA food safety procedures.

Companion legislation

The 2008 regulation was adopted at the same time as the following companion legislation, which goes into more detail on the 3 categories:

- Regulation (EC) No [1332/2008](#) on food enzymes (see [summary](#));
- Regulation (EC) No [1333/2008](#) on food additives (see [summary](#));
- Regulation (EC) No [1334/2008](#) on flavourings (see [summary](#)).

FROM WHEN DO THE REGULATIONS APPLY?

Regulation (EC) No 1331/2008 has applied since 20 January 2009.

Amending Regulation (EU) 2019/1381 applies from 27 March 2021.

BACKGROUND

For more information, see:

- [European Food Safety Authority](#)
- [Common authorisation procedure](#) (*European Commission*).

MAIN DOCUMENTS

Regulation (EC) No [1331/2008](#) of the European Parliament and of the Council of 16 December 2008 establishing a common authorisation procedure for food additives, food enzymes and food flavourings (OJ L 354, 31.12.2008, pp. 1-6)

Successive amendments to Regulation (EU) No 1331/2008 have been incorporated in the basic text. This [consolidated version](#) is of documentary value only.

Regulation (EU) [2019/1381](#) of the European Parliament and of the Council of 20 June 2019 on the transparency and sustainability of the EU risk assessment in the food chain and amending Regulations (EC) No 178/2002, (EC) No 1829/2003, (EC) No 1831/2003, (EC) No 2065/2003, (EC) No 1935/2004, (EC) No 1331/2008, (EC) No 1107/2009, (EU) 2015/2283 and Directive 2001/18/EC (OJ L 231, 6.9.2019, pp. 1-28)

RELATED DOCUMENTS

Regulation (EC) No [1332/2008](#) of the European Parliament and of the Council of 16 December 2008 on food enzymes and amending Council Directive 83/417/EEC, Council Regulation (EC) No 1493/1999, Directive 2000/13/EC, Council Directive 2001/112/EC and Regulation (EC) No 258/97 (OJ L 354, 31.12.2008, pp. 7-15)

See [consolidated version](#).

Regulation (EC) No [1333/2008](#) of the European Parliament and of the Council of 16 December 2008 on food additives (OJ L 354, 31.12.2008, pp. 16-33)

See [consolidated version](#).

Regulation (EC) No [1334/2008](#) of the European Parliament and of the Council of 16 December 2008 on flavourings and certain food ingredients with flavouring properties for use in and on foods and amending Council Regulation (EEC) No 1601/91, Regulations (EC) No 2232/96 and (EC) No 110/2008 and Directive 2000/13/EC (OJ L 354, 31.12.2008, pp. 34-50)

See [consolidated version](#).

Regulation (EC) No [178/2002](#) of the European Parliament and of the Council of 28 January 2002 laying down the general principles and requirements of food law, establishing the European Food Safety Authority and laying down procedures in matters of food safety (OJ L 31, 1.2.2002, pp. 1-24)

See [consolidated version](#).

last update 1.10.2020

The common organisation of agricultural markets in the EU

SUMMARY OF:

[Regulation \(EU\) No 1308/2013 — common organisation of the markets in agricultural products](#)

WHAT IS THE AIM OF THE REGULATION?

- It aims at stabilising markets and preventing market crises from escalating by providing a safety net to agricultural markets through the use of market intervention tools (public intervention¹ and private storage aid) and exceptional measures. It also provides for the necessary market transparency measures to allow agricultural producers to better make their production and investment decisions in view of market developments.
- It aims at improving productivity and quality at the production level, boosting demand and helping [EU](#) agricultural sectors to better adapt to market changes and increase their competitiveness through aid to specific sectors (particularly fruit and vegetables, and wine).
- It seeks to encourage cooperation within the food supply chain through producer organisations² and interbranch organisations³ (organisations that represent actors of the food supply chain involved in the production of, trade in and/or processing of products in specific sectors).
- It lays down minimum quality requirements (marketing standards), rules and conditions to ensure the quality of the production process and of the products. It specifies the rules for the use of optional reserved terms for value-adding product features or production processes for a number of products. It also sets out rules on trade in agricultural products and specific rules on [competition](#).
- The regulation has been amended on a number of occasions, most recently by Regulation (EU) [2020/2220](#), which introduces [transitional rules](#) for the [common agricultural policy \(CAP\)](#) covering the 2021-2022 period.

KEY POINTS

The main rules set out in the regulation are divided into several parts. The [European Commission](#) is granted the power to adopt additional [delegated](#) and [implementing](#) acts to further elaborate upon these rules.

1. Internal market

The internal market section is itself broken down into a number of titles and chapters.

Market intervention

The regulation lays down market intervention rules for a defined list of products in the following fields.

Public intervention and aid for private storage

The regulation lays down rules on market intervention concerning:

- public intervention, where products are purchased and stored by EU governments or their agencies until their disposal; and
- aid granted for the storage of products by private-sector organisations.

The regulation grants the Commission the power to adopt:

- delegated acts, to ensure that such products are suitable for long-term storage and are of sound, fair and marketable quality (see Delegated Regulation (EU) [2016/1238](#)); and
- implementing acts, covering issues such as the minimum storage capacity for intervention storage places (see Implementing Regulation (EU) [2016/1240](#)).

Aid schemes

The regulation includes rules on a number of aid schemes.

- For the supply of fruit and vegetables and of milk and milk products in educational establishments (so-called school schemes):
 - EU countries must draw up a strategy to implement the scheme at the national or regional level;
 - further rules are found in Regulation (EU) [2017/40](#), Regulation (EU) [2017/39](#) and Regulation (EU) [2020/600](#).
- In the olive oil and table olives sector:
 - 3-year work programmes drawn up by producer organisations and/or their associations to benefit producers in Greece, France and Italy;
 - further rules are found in Regulation (EU) No [615/2014](#), Regulation (EU) No [611/2014](#) and Regulation (EU) [2020/600](#).
- In the fruit and vegetables sector:
 - rules on operational funds and operational programmes, on national financial assistance and on a national strategy for such programmes;

- further rules are found in Regulation (EU) No [543/2011](#), Regulation (EU) [2020/743](#), Regulation (EU) [2020/884](#) and Regulation (EU) [2020/600](#).
- In the wine sector:
 - detailed rules are set out in Regulation (EU) [2016/1149](#) and Regulation (EU) [2016/1150](#);
- In the apiculture sector:
 - detailed rules are set out in Regulation (EU) [2015/1366](#), Regulation (EU) [2015/1368](#), Decision (EU) [2019/974](#) and Regulation (EU) [2020/600](#).
- In the hop sector:
 - detailed rules are set out in Regulation (EU) No [738/2010](#).
- For the scheme of authorisations for vine plantings:
 - rules on the scheme are set out in Regulations (EU) [2018/273](#) and (EU) [2018/274](#).

EU rules for fixing prices and other parameters needed for market measures for various agricultural products are set out in Regulation (EU) No [1370/2013](#) (see [summary](#)).

Marketing and producer organisations

The regulation sets out rules for marketing and producer organisations covering the following fields.

Marketing

- Marketing standards — products that are covered in this section must conform to the standards to be marketed in the EU. Detailed rules are set out in:
 - Regulation (EU) No [29/2012](#) and Regulation (EEC) No [2568/91](#) for olive oil;
 - Regulation (EU) No [1333/2011](#) for bananas;
 - Regulation (EU) No [543/2011](#) for fruit and vegetables;
 - Regulation (EU) [2019/934](#) and Regulation (EU) [2019/935](#) for wine;
 - Regulation (EC) No [589/2008](#) for eggs;
 - Regulation (EC) No [617/2008](#) for hatching eggs;
 - Regulation (EC) No [543/2008](#) for poultrymeat;
 - Regulation (EC) No [566/2008](#) for bovine meat;
 - Regulation (EC) No [1850/2006](#) for hops.
- There are rules on schemes to promote the unique characteristics of agricultural products and foodstuffs (Regulation (EU) No [1151/2012](#)). These relate to aspects such as protected designations of origin, geographical indications, traditional terms, and presentation and labelling (see [summary](#)). Detailed rules for the wine sector

are set out in Regulation (EU) [2019/33](#) (see [summary](#)) and Regulation (EU) [2019/34](#).

Individual sectors (sugar, wine and milk)

- Detailed rules are set out for:
 - sugar in Regulation (EC) No [967/2006](#);
 - milk in Regulation (EU) No [880/2012](#) and Regulation (EU) No [511/2012](#);
 - wine in Regulation (EU) [2018/273](#) and Regulation (EU) [2018/274](#) (vineyard register, trade, documentation, declarations, controls).

Producer organisations and interbranch organisations

- These organisations are required to fulfil specific requirements and pursue specific aims to be recognised and to be exempted from certain EU competition rules.
- Rules and compulsory contributions may be extended to economic operators who are not part of such an organisation.
- Detailed rules are set out in Commission Delegated Regulation (EU) [2016/232](#) and, for the fruit and vegetables sector, in Commission Implementing Regulation (EU) [2017/892](#).
- Specific rules for hop producer groups are set out in Regulation (EC) No [1299/2007](#).

2. Trade with non-EU countries

The regulation sets out rules on import and export licences, import duties, tariff quotas, safeguards and export refunds.

Further rules are set out in:

- Regulation (EU) [2015/1538](#) with regard to import licence applications;
- Commission Delegated Regulation (EU) [2016/1237](#) and Commission Implementing Regulation (EU) [2016/1239](#);
- Regulation (EU) [2019/2163](#) concerning additional import duties;
- Commission Regulation (EU) No [642/2010](#) defining the method for calculating import duties in the cereals sector;
- Commission Delegated Regulation (EU) [2020/760](#) and Commission Implementing Regulation (EU) [2020/761](#), along with Commission Implementing Regulation (EU) [2020/1988](#) and Commission Delegated Regulation (EU) [2020/1987](#), concerning the administration of import and export tariff quotas.

3. Competition rules

The regulation sets out rules covering:

- competition and agriculture;
 - these apply to all agreements, decisions and practices referred to in [Article 101\(1\)](#) and [Article 102](#) TFEU that relate to the production of, or the trade in, agricultural products
 - an exception to the application of these rules is granted to farmers and associations for the objectives of the CAP, along with agreements and concerted practices of recognised interbranch organisations;
- State aid for agriculture.

4. General rules

Exceptional measures

- Measures against market disturbance, to allow an **efficient and effective response** to threats of market disturbance caused by significant price rises or falls on internal or external markets, or other events and circumstances significantly disturbing or threatening to disturb the market, where that situation, or its effect on the market, is likely to continue or deteriorate. Such measures are by essence related to a particular threat or disturbance.
- Examples of the application of exceptional measures can be found in:
 - Regulation (EU) No [1263/2014](#) for dairy products at the time of the Russian embargo on exports from the EU;
 - Regulation (EU) [2020/592](#), Regulation (EU) [2020/1275](#), Regulation (EU) [2020/884](#) and Regulation (EU) [2020/600](#) for the fruit and vegetables and wine sectors at the time of the COVID-19 pandemic, and Regulations (EU) [2020/133](#) and [2020/419](#) to address the imposition of US tariffs on wine imports;
 - Regulation (EU) [2015/1853](#) concerning support for livestock farmers at the time of the 2015 crisis in the dairy and pigmeat sectors.
- Measures concerning animal diseases and loss of consumer confidence due to public, animal or plant health risks. These concern the following sectors:
 - beef and veal
 - milk and milk products
 - pigmeat
 - sheepmeat and goatmeat
 - eggs
 - poultrymeat.

- Measures of this kind were implemented, for example, by means of Commission Implementing Regulation (EU) [2018/1507](#) on exceptional market support measures

for the egg and poultrymeat sectors in Poland (following outbreaks of avian influenza).

- Specific problems:
 - emergency measures concerning vine planting at the time of the COVID pandemic are set out in Regulation (EU) [2020/601](#).
- Agreements and decisions during periods of severe imbalance in markets:
 - specific rules are set out, for example, during the COVID pandemics in Regulation (EU) [2020/593](#), Regulation (EU) [2020/594](#) and Regulation (EU) [2020/599](#).

Communications and reporting

Rules on communications and reporting are set out in Regulation (EU) [2017/1185](#).

Reserve for crises in the agricultural sector

Funds from the reserve can be made available in years when additional support is required for the sector.

From when does the regulation apply?

- It has applied since 1 January 2014.
- It repealed Regulations (EEC) No [922/72](#), (EEC) No [234/79](#), (EC) No [1037/2001](#) and (EC) No [1234/2007](#).

BACKGROUND

The CAP's financing, managing and monitoring rules are set out in Regulation (EU) No [1306/2013](#) (see [summary](#)).

The Commission has proposed a reform of the CAP that aims to foster a sustainable and competitive agricultural sector that can contribute significantly to the [European Green Deal](#) (see [summary](#)), especially with regard to the [farm to fork strategy](#) (see [summary](#)) and the [biodiversity strategy](#) (see [summary](#)). In particular, the proposals focus on:

- securing a fair deal and a stable economic future for farmers;
- setting higher ambitions for environmental and climate action;
- strengthening the position of agricultural producers in the food supply chain.

KEY TERMS

1. **Public intervention:** where products are bought in by the competent authorities of the Member States and stored by them until disposed of.
2. **Producer organisations:** organisations of producers formed to increase collective bargaining power, in particular by pursuing specific objectives set out in Article 152 of the regulation.
3. **Interbranch organisations:** organisations of producers and processors or traders in the supply chain, in particular by pursuing specific objectives set out in Article 157 of the regulation.

MAIN DOCUMENT

Regulation (EU) No [1308/2013](#) of the European Parliament and of the Council of 17 December 2013 establishing a common organisation of the markets in agricultural products and repealing Council Regulations (EEC) No 922/72, (EEC) No 234/79, (EC) No 1037/2001 and (EC) No 1234/2007 (OJ L 347, 20.12.2013, pp. 671-854)

Successive amendments to Regulation (EU) No 1308/2013 have been incorporated into the original text. This [consolidated version](#) is of documentary value only.

RELATED DOCUMENTS

Consolidated version of the Treaty on the Functioning of the European Union — Part Three — Union policies and internal actions — Title VII — Common rules on competition, taxation and approximation of laws — Chapter 1 — Rules on competition — Section 1 — Rules applying to undertakings — [Article 101](#) (ex Article 81 TEC) (OJ C 202, 7.6.2016, pp. 88-89)

Consolidated version of the Treaty on the Functioning of the European Union — Part Three — Union policies and internal actions — Title VII — Common rules on competition, taxation and approximation of laws — Chapter 1 — Rules on competition — Section 1 — Rules applying to undertakings — [Article 102](#) (ex Article 82 TEC) (OJ C 202, 7.6.2016, p. 89)

Regulation (EU) No [1306/2013](#) of the European Parliament and of the Council of 17 December 2013 on the financing, management and monitoring of the common agricultural policy and repealing Council Regulations (EEC) No 352/78, (EC) No 165/94, (EC) No 2799/98, (EC) No 814/2000, (EC) No 1290/2005 and (EC) No 485/2008 (OJ L 347, 20.12.2013, pp. 549-607)

See [consolidated version](#).

Regulation (EU) No [1151/2012](#) of the European Parliament and of the Council of 21 November 2012 on quality schemes for agricultural products and foodstuffs (OJ L 343, 14.12.2012, pp. 1-29)

See [consolidated version](#).

Council Regulation (EEC) No [2658/87](#) of 23 July 1987 on the tariff and statistical nomenclature and on the Common Customs Tariff (OJ L 256, 7.9.1987, pp. 1-675)

See [consolidated version](#).

Delegated and implementing acts

Commission Implementing Regulation (EU) [2020/1988](#) of 11 November 2020 laying down rules for the application of Regulations (EU) No 1308/2013 and (EU) No 510/2014 of the European Parliament and of the Council as regards the administration of import tariff quotas in accordance with the 'first come, first served' principle (OJ L 422, 14.12.2020, pp. 4-136)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2020/1987](#) of 14 July 2020 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council and Regulation (EU) No 1306/2013 of the European Parliament and of the Council as regards the lodging and release of securities in the administration of tariff quotas based on the chronological order of the submission of applications (OJ L 422, 14.12.2020, pp. 1-3)

Commission Delegated Regulation (EU) [2020/1275](#) of 6 July 2020 amending Delegated Regulation (EU) 2020/592 on temporary exceptional measures derogating from certain provisions of Regulation (EU) No 1308/2013 of the European Parliament and of the Council to address the market disturbance in the fruit and vegetables and wine sectors caused by the COVID-19 pandemic and measures linked to it (OJ L 300, 14.9.2020, pp. 26-31)

Commission Implementing Regulation (EU) [2020/1028](#) of 15 July 2020 fixing the closing date for the submission of applications for private storage aid for fresh or chilled meat of bovine animals aged eight months or more under Implementing Regulation (EU) 2020/596 (OJ L 227, 16.7.2020, pp. 8-9)

Commission Implementing Regulation (EU) [2020/1029](#) of 15 July 2020 fixing the closing date for the submission of applications for private storage aid for sheepmeat and goatmeat under Implementing Regulation (EU) 2020/595 (OJ L 227, 16.7.2020, pp. 10-11)

Commission Delegated Regulation (EU) [2020/884](#) of 4 May 2020 derogating in respect of the year 2020 from Delegated Regulation (EU) 2017/891 as regards the fruit and vegetables sector and from Delegated Regulation (EU) 2016/1149 as regards the wine sector in connection with the COVID-19 pandemic (OJ L 205, 29.6.2020, pp. 1-8)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2020/760](#) of 17 December 2019 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the rules for the administration of import and export tariff quotas subject to licences and

supplementing Regulation (EU) No 1306/2013 of the European Parliament and of the Council as regards the lodging of securities in the administration of tariff quotas (OJ L 185, 12.6.2020, pp. 1-23)

Commission Implementing Regulation (EU) [2020/761](#) of 17 December 2019 laying down rules for the application of Regulations (EU) No 1306/2013, (EU) No 1308/2013 and (EU) No 510/2014 of the European Parliament and of the Council as regards the management system of tariff quotas with licences (OJ L 185, 12.6.2020, pp. 24-252)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2020/743](#) of 30 March 2020 amending Delegated Regulation (EU) 2017/891 as regards the calculation of the value of marketed production of producer organisations in the fruit and vegetables sector (OJ L 176, 5.6.2020, pp. 1-3)

Commission Implementing Regulation (EU) [2020/600](#) of 30 April 2020 derogating from Implementing Regulation (EU) 2017/892, Implementing Regulation (EU) 2016/1150, Implementing Regulation (EU) No 615/2014, Implementing Regulation (EU) 2015/1368 and Implementing Regulation (EU) 2017/39 as regards certain measures to address the crisis caused by the COVID-19 pandemic (OJ L 140, 4.5.2020, pp. 40-45)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2020/601](#) of 30 April 2020 on emergency measures derogating from Articles 62 and 66 of Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the validity of vine planting authorisations and the grubbing up in case of anticipated replanting (OJ L 140, 4.5.2020, pp. 46-49)

Commission Delegated Regulation (EU) [2020/591](#) of 30 April 2020 opening a temporary exceptional private storage aid scheme for certain cheeses and fixing the amount of aid in advance (OJ L 140, 4.5.2020, pp. 1-5)

Commission Delegated Regulation (EU) [2020/592](#) of 30 April 2020 on temporary exceptional measures derogating from certain provisions of Regulation (EU) No 1308/2013 of the European Parliament and of the Council to address the market disturbance in the fruit and vegetables and wine sectors caused by the COVID-19 pandemic and measures linked to it (OJ L 140, 4.5.2020, pp. 6-12)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2020/593](#) of 30 April 2020 authorising agreements and decisions on market stabilisation measures in the potatoes sector (OJ L 140, 4.5.2020, pp. 13-16)

Commission Implementing Regulation (EU) [2020/594](#) of 30 April 2020 authorising agreements and decisions on market stabilisation measures in the live trees and other plants, bulbs, roots and the like, cut flowers and ornamental foliage sector (OJ L 140, 4.5.2020, pp. 17-20)

Commission Implementing Regulation (EU) [2020/595](#) of 30 April 2020 granting aid for private storage for sheepmeat and goatmeat and fixing the amount of the aid in advance (OJ L 140, 4.5.2020, pp. 21-25)

Commission Implementing Regulation (EU) [2020/596](#) of 30 April 2020 granting aid for private storage for fresh and chilled meat of bovine animals aged eight months or more and fixing the amount of aid in advance (OJ L 140, 4.5.2020, pp. 26-30)

Commission Implementing Regulation (EU) [2020/597](#) of 30 April 2020 granting aid for private storage for butter and fixing the amount of aid in advance (OJ L 140, 4.5.2020, pp. 31-33)

Commission Implementing Regulation (EU) [2020/598](#) of 30 April 2020 granting aid for private storage for skimmed milk powder and fixing the amount of aid in advance (OJ L 140, 4.5.2020, pp. 34-36)

Commission Implementing Regulation (EU) [2020/599](#) of 30 April 2020 authorising agreements and decisions on the planning of production in the milk and milk products sector (OJ L 140, 4.5.2020, pp. 37-39)

Commission Delegated Regulation (EU) [2020/419](#) of 30 January 2020 derogating from Delegated Regulation (EU) 2016/1149 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the national support programmes in the wine sector (OJ L 84, 20.3.2020, pp. 1-4)

Commission Implementing Regulation (EU) [2020/133](#) of 30 January 2020 derogating from Commission Implementing Regulation (EU) 2016/1150 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the national support programmes in the wine sector (OJ L 27 of 31.1.2020, pp. 24-26)

Commission Implementing Regulation (EU) [2019/2163](#) of 17 December 2019 fixing the trigger volumes for the years 2020 and 2021 for the purposes of possible application of additional import duties on certain fruit and vegetables (OJ L 328, 18.12.2019, pp. 58-60)

Commission Implementing Decision (EU) [2019/974](#) of 12 June 2019 approving the national programmes to improve the production and marketing of apiculture products submitted by the Member States under Regulation (EU) No 1308/2013 of the European Parliament and of the Council (OJ L 157, 14.6.2019, pp. 28-30)

Commission Implementing Regulation (EU) [2019/935](#) of 16 April 2019 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards analysis methods for determining the physical, chemical and organoleptic characteristics of grapevine products and notifications of Member States decisions concerning increases in natural alcoholic strength (OJ L 149, 7.6.2019, pp. 53-57)

Commission Delegated Regulation (EU) [2019/934](#) of 12 March 2019 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards wine-growing areas where the alcoholic strength may be increased, authorised oenological

practices and restrictions applicable to the production and conservation of grapevine products, the minimum percentage of alcohol for by-products and their disposal, and publication of OIV files (OJ L 149, 7.6.2019, pp. 1-52)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2019/33](#) of 17 October 2018 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards applications for protection of designations of origin, geographical indications and traditional terms in the wine sector, the objection procedure, restrictions of use, amendments to product specifications, cancellation of protection, and labelling and presentation (OJ L 9, 11.1.2019, pp. 2-45)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2019/34](#) of 17 October 2018 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards applications for protection of designations of origin, geographical indications and traditional terms in the wine sector, the objection procedure, amendments to product specifications, the register of protected names, cancellation of protection and use of symbols, and of Regulation (EU) No 1306/2013 of the European Parliament and of the Council as regards an appropriate system of checks (OJ L 9, 11.1.2019, pp. 46-76)

Commission Implementing Regulation (EU) [2018/1507](#) of 10 October 2018 on exceptional market support measures for the eggs and poultrymeat sectors in Poland (OJ L 255, 11.10.2018, pp. 7-11)

Commission Delegated Regulation (EU) [2018/273](#) of 11 December 2017 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the scheme of authorisations for vine plantings, the vineyard register, accompanying documents and certification, the inward and outward register, compulsory declarations, notifications and publication of notified information, and supplementing Regulation (EU) No 1306/2013 of the European Parliament and of the Council as regards the relevant checks and penalties, amending Commission Regulations (EC) No 555/2008, (EC) No 606/2009 and (EC) No 607/2009 and repealing Commission Regulation (EC) No 436/2009 and Commission Delegated Regulation (EU) 2015/560 (OJ L 58, 28.2.2018, pp. 1-59)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2018/274](#) of 11 December 2017 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the scheme of authorisations for vine plantings, certification, the inward and outward register, compulsory declarations and notifications, and of Regulation (EU) No 1306/2013 of the European Parliament and of the Council as regards the relevant checks, and repealing Commission Implementing Regulation (EU) 2015/561 (OJ L 58, 28.2.2018, pp. 60-95)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2017/1182](#) of 20 April 2017 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the Union scales for the classification of beef, pig and sheep carcasses and as regards the reporting of market prices of certain categories of carcasses and live animals (OJ L 171, 4.7.2017, pp. 74-99)

Commission Delegated Regulation (EU) [2017/1183](#) of 20 April 2017 on supplementing Regulations (EU) No 1307/2013 and (EU) No 1308/2013 of the European Parliament and of the Council with regard to the notifications to the Commission of information and documents (OJ L 171, 4.7.2017, pp. 100-102)

Commission Implementing Regulation (EU) [2017/1185](#) of 20 April 2017 laying down rules for the application of Regulations (EU) No 1307/2013 and (EU) No 1308/2013 of the European Parliament and of the Council as regards notifications to the Commission of information and documents and amending and repealing several Commission Regulations (OJ L 171, 4.7.2017, pp. 113-130)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2017/891](#) of 13 March 2017 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to the fruit and vegetables and processed fruit and vegetables sectors and supplementing Regulation (EU) No 1306/2013 of the European Parliament and of the Council with regard to penalties to be applied in those sectors and amending Commission Implementing Regulation (EU) No 543/2011 (OJ L 138, 25.5.2017, pp. 4-56)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2017/892](#) of 13 March 2017 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to the fruit and vegetables and processed fruit and vegetables sectors (OJ L 138, 25.5.2017, pp. 57-91)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2017/40](#) of 3 November 2016 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to Union aid for the supply of fruit and vegetables, bananas and milk in educational establishments and amending Commission Delegated Regulation (EU) No 907/2014 (OJ L 5, 10.1.2017, pp. 11-19)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2017/39](#) of 3 November 2016 on rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council

with regard to Union aid for the supply of fruit and vegetables, bananas and milk in educational establishments (OJ L 5, 10.1.2017, pp. 1-10)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2016/1237](#) of 18 May 2016 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to the rules for applying the system of import and export licences and supplementing Regulation (EU) No 1306/2013 of the European Parliament and of the Council with regard to the rules on the release and forfeit of securities lodged for such licences, amending Commission Regulations (EC) No 2535/2001, (EC) No 1342/2003, (EC) No 2336/2003, (EC) No 951/2006, (EC) No 341/2007 and (EC) No 382/2008 and repealing Commission Regulations (EC) No 2390/98, (EC) No 1345/2005, (EC) No 376/2008 and (EC) No 507/2008 (OJ L 206, 30.7.2016, pp. 1-14)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2016/1238](#) of 18 May 2016 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to public intervention and aid for private storage (OJ L 206, 30.7.2016, pp. 15-43)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2016/1239](#) of 18 May 2016 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to the system of import and export licences (OJ L 206, 30.7.2016, pp. 44-70)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2016/1240](#) of 18 May 2016 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to public intervention and aid for private storage (OJ L 206, 30.7.2016, pp. 71-127)

See [consolidated version](#).

Commission Implementing Regulation (EU) [2016/1150](#) of 15 April 2016 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the national support programmes in the wine sector (OJ L 190, 15.7.2016, pp. 23-71)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2016/1149](#) of 15 April 2016 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the national support programmes in the wine sector and amending Commission Regulation (EC) No 555/2008 (OJ L 190, 15.7.2016, pp. 1-22)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2016/232](#) of 15 December 2015 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to certain aspects of producer cooperation (OJ L 44, 19.2.2016, pp. 1-4)

Commission Delegated Regulation (EU) [2015/1853](#) of 15 October 2015 providing for temporary exceptional aid to farmers in the livestock sectors (OJ L 271, 16.10.2015, pp. 25-30)

Commission Implementing Regulation (EU) [2015/1368](#) of 6 August 2015 laying down rules for the application of Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to aid in the apiculture sector (OJ L 211, 8.8.2015, pp. 9-16)

See [consolidated version](#).

Commission Delegated Regulation (EU) [2015/1366](#) of 11 May 2015 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council with regard to aid in the apiculture sector (OJ L 211, 8.8.2015, pp. 3-6)

See [consolidated version](#).

Commission Delegated Regulation (EU) No [1263/2014](#) of 26 November 2014 providing for temporary exceptional aid to milk producers in Estonia, Latvia and Lithuania (OJ L 341, 27.11.2014, pp. 3-5)

Commission Implementing Regulation (EU) No [615/2014](#) of 6 June 2014 laying down detailed rules for the application of Regulation (EU) No 1306/2013 of the European Parliament and of the Council and Regulation (EU) No 1308/2013 of the European Parliament and of the Council in respect of work programmes to support the olive oil and table olives sectors (OJ L 168, 7.6.2014, pp. 95-102)

See [consolidated version](#).

Commission Delegated Regulation (EU) No [611/2014](#) of 11 March 2014 supplementing Regulation (EU) No 1308/2013 of the European Parliament and of the Council as regards the support programmes for the olive-oil and table-olives sector (OJ L 168, 7.6.2014, pp. 55-61)

See [consolidated version](#).

Commission Delegated Regulation (EU) No [880/2012](#) of 28 June 2012 supplementing Council Regulation (EC) No 1234/2007 as regards transnational cooperation and contractual negotiations of producer organisations in the milk and milk products sector (OJ L 263, 28.9.2012, pp. 8-9)

Commission Implementing Regulation (EU) No [511/2012](#) of 15 June 2012 on notifications concerning producer and interbranch organisations and contractual negotiations and relations provided for in Council Regulation (EC) No 1234/2007 in the milk and milk products sector (OJ L 156, 16.6.2012, pp. 39-40)

See [consolidated version](#).

Commission Implementing Regulation (EU) No [29/2012](#) of 13 January 2012 on marketing standards for olive oil (OJ L 12, 14.1.2012, pp. 14-21)

See [consolidated version](#).

Commission Implementing Regulation (EU) No [543/2011](#) of 7 June 2011 laying down detailed rules for the application of Council Regulation (EC) No 1234/2007 in respect of the fruit and vegetables and processed fruit and vegetables sectors (OJ L 157, 15.6.2011, pp. 1-163)

See [consolidated version](#).

Commission Regulation (EU) No [133/2011](#) of 14 February 2011 establishing the standard import values for determining the entry price of certain fruit and vegetables (OJ L 41, 15.2.2011, pp. 4-5)

Commission Regulation (EU) No [738/2010](#) of 16 August 2010 laying down detailed rules on payments to German producer organisations in the hops sector (OJ L 216, 17.8.2010, pp. 11-13)

See [consolidated version](#).

Commission Regulation (EU) No [642/2010](#) of 20 July 2010 on rules of application (cereal sector import duties) for Council Regulation (EC) No 1234/2007 (OJ L 187, 21.7.2010, pp. 5-22)

See [consolidated version](#).

Commission Regulation (EC) No [617/2008](#) of 27 June 2008 laying down detailed rules for implementing Regulation (EC) No 1234/2007 as regards marketing standards for eggs for hatching and farmyard poultry chicks (OJ L 168, 28.6.2008, pp. 5-16)

See [consolidated version](#).

Commission Regulation (EC) No [589/2008](#) of 23 June 2008 laying down detailed rules for implementing Council Regulation (EC) No 1234/2007 as regards marketing standards for eggs (OJ L 163, 24.6.2008, pp. 6-23)

See [consolidated version](#).

Commission Regulation (EC) No [566/2008](#) of 18 June 2008 laying down detailed rules for the application of Council Regulation (EC) No 1234/2007 as regards the marketing of the meat of bovine animals aged 12 months or less (OJ L 160, 19.6.2008, pp. 22-25)

See [consolidated version](#).

Commission Regulation (EC) No [543/2008](#) of 16 June 2008 laying down detailed rules for the application of Council Regulation (EC) No 1234/2007 as regards the marketing standards for

poultrymeat (OJ L 157, 17.6.2008, pp. 46-87)

See [consolidated version](#).

Commission Regulation (EC) No [1299/2007](#) of 6 November 2007 on the recognition of producer groups for hops (Codified version) (OJ L 289, 7.11.2007, pp. 4-7)

See [consolidated version](#).

Commission Regulation (EC) No [1850/2006](#) of 14 December 2006 laying down detailed rules for the certification of hops and hop products (OJ L 355, 15.12.2006, pp. 72-87)

See [consolidated version](#).

Commission Regulation (EC) No [967/2006](#) of 29 June 2006 laying down detailed rules for the application of Council Regulation (EC) No 318/2006 as regards sugar production in excess of the quota (OJ L 176, 30.6.2006, pp. 22-31)

See [consolidated version](#).

Commission Regulation (EEC) No [2568/91](#) of 11 July 1991 on the characteristics of olive oil and olive-residue oil and on the relevant methods of analysis (OJ L 248, 5.9.1991, pp. 1-83)

See [consolidated version](#).

last update 18.6.2021

Information on Nutrition and Health Claims

August 2019



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August 2019

Published by:

Food Safety Authority of Ireland
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Dublin 1, D01 P2V6

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ISBN 1-904465-69-2

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Contents

Background	2
Legislation Referred to in this Document	2
Nutrition and Health Claims Overview	2
Nutrition Claims	4
Making 'source-of' Claims on Food Products	10
Health Claims	13
Nutrition Labelling Requirements under Regulation EU No 1169/2011 (FIC)	19
Mandatory Nutrition Labelling	20
Front of Pack (FoP) Nutrition Labelling (Voluntary)	25
Sample Labels	26
Annex 1. How I Can Make Permitted Nutrition and Health Claims on My Food Product – Practical Examples	29



Background

This document is guidance information on the regulation of nutrition and health claims in Ireland*.

The document provides an overview of the:

- Nutrition and health claims legislation
- Nutrition labelling requirements for food products bearing authorised nutrition and health claims

Legislation Referred to in this Document

Throughout the document where guidance is given on aspects of the legislation, a reference to the relevant articles and legislation is included. This is to facilitate a more detailed examination. For precise and accurate interpretation, refer to the legislation below.

Nutrition and Health Claims

- 1) Regulation (EC) 1924/2006 of the European Parliament and of the council of 20 December 2006 on nutrition and health claims made on food (as amended)
- 2) Commission implementing decision of 24 January 2013 adopting guidelines for the implementation of specific conditions for health claims laid down in Article 10 of Regulation (EC) No 1924/2006 of the European Parliament and of the Council
- 3) European Court of Justice Ruling C-19/15 regarding the scope of Commission Regulation 1924/2006 Article 1(2)
- 4) Regulation (EU) No 1169/2011 of the European Parliament and of the Council of 25 October 2011 on the provision of food information to consumers (commonly known as FIC)

Food Supplements

- 4) Directive 2002/46/EC of the European Parliament and of the Council of 10 June 2002 on the approximation of the laws of the Member States relating to food supplements
- 5) S.I. No. 506 of 2007 European Communities (Food Supplement) Regulations, 2007

Nutrition and Health Claims Overview

Regulation 1924/2006 on nutrition and health claims on food came into effect on 1st July 2007. It covers all foods including foods for particular nutritional uses (PARNUTS), natural mineral waters, water intended for human consumption and food supplements. As of July 20th 2016 PARNUTS was repealed by Regulation (EU) No 609/2013 on food intended for infants and young children, foods for special medical purposes and total diet replacement for weight control.

The Regulation applies to nutrition and health claims made in commercial communications (whether in the labelling, presentation or advertising) of the food to be delivered to the final consumer, including health professionals.

It includes foods:

- Placed on the market unpacked or supplied in bulk
- Intended for supply to restaurants, hospitals, schools, canteens and similar mass caterers

The Regulation **does not** apply to claims made in non-commercial communications such as:

- Dietary guidelines
- Advice issued by public health authorities and bodies
- Information in the press and in scientific publications

* Given that food legislation continues to be adapted and amended, updates on nutrition and health claims will be provided through the FSAI website www.fsai.ie

Claims should not:

- ✗ Be false or misleading
- ✗ Give rise to doubt about the safety and/or nutrition adequacy of other foods
- ✗ Encourage or condone excess consumption of a food
- ✗ State, suggest or imply that a properly balanced and varied diet cannot provide adequate quantities of nutrients
- ✗ In general, refer to changes in bodily function that could give rise to, or exploit fear in the consumer either textually or through pictorial, graphic or symbolic representation
(Article 3 of Regulation 1924/2006)
- ✗ Attribute to any foodstuff the property of preventing, treating or curing a human disease, or referring to such properties
(Article 7 (3) of Regulation 1169/2011)

In order to make a claim, the following conditions must be fulfilled:

- ✓ The substances for which a claim is made, must be shown to have beneficial nutritional or physiological effects established by **generally accepted scientific principles**
- ✓ The beneficial nutrient or substance for which the claim is made, is present in the final product in a **significant quantity**
 - the nutrient or substance for which the claim is made is in a form that is **‘available for use by the body’** (bioavailable)
 - the claimed beneficial effect has to be provided by a **‘reasonable quantity of the consumed product’**. This means that an adequate amount of the active nutrient or substance has to be present in a reasonable amount of the food product
 - if the claimed beneficial effect is due to the absence or reduction of a nutrient or substance, then the nutrient or substance should be absent or reduced to the extent that produces the nutritional or physiological effect claimed
- ✓ The **average consumer should understand** the beneficial effects expressed in the claim
- ✓ The claim refers to the **food ready for consumption** according to the manufacturer’s instructions
- ✓ The claim complies with the specific conditions for nutrition claims and health claims (as outlined in this document)

(Article 5 of Regulation 1924/2006)

Nutrient Profiles

Food products bearing claims should not be inherently “unhealthy”. This means that foods bearing claims should not have high levels of nutrients that need to be restricted to prevent chronic diseases, e.g. fat, saturated fatty acids, *trans* fatty acids, sugars and salt. Rules setting “nutrient profiles” will establish healthy limits for different categories of foods.

(Article 4 of Regulation 1924/2006)

In 2008, the European Food Safety Authority published an opinion on nutrient profiles (<http://www.efsa.europa.eu/en/efsajournal/pub/644.htm>). However, nutrient profiles have yet to be established by the Commission and Member States.

Nutrition Claims

Regulation 1924/2006 defines a **nutrition claim** as:

‘any claim which states, suggests or implies that a food has particular beneficial nutritional properties due to:

- (a) the energy (calorific value) it
 - (i) provides;
 - (ii) provides at a reduced or increased rate; or
 - (iii) does not provide; and/or
- (b) the nutrients or other substances it
 - (i) contains;
 - (ii) contains in reduced or increased proportions; or
 - (iii) does not contain.’

Nutrition claims are the simplest type of claim about the nutrients a food contains, e.g. orange juice contains vitamin C.



Regulation No 1169/2011 defines nutrient as:

- Protein
- Carbohydrate
- Fat
- Fibre
- Sodium
- Vitamins and minerals listed in point 1 of Part A of Annex XIII to this Regulation (see page 8) and substances which belong to or are components of one of those categories

How to find out if you can make a nutrition claim on your food product

This step-by-step guide will show you how to find out if you can make a nutrition claim on your food.

Step 1. Describe your food product

You need to find out exactly:

1. What nutrients are in your food product?
2. How much of each nutrient is present in 100g or 100ml of your food, as eaten?
3. Is your food product high in total fat, saturated fat, *trans* fat, sugars and salt, so that when nutrient profiles are introduced, claims will not be permitted?

Note:

Levels for nutrient profiles have yet to be established by the Commission and Member States. In the meantime, it is inadvisable to put claims on food products high in these nutrients, particularly saturated fat, sugar and salt. <http://www.efsa.europa.eu/en/efsajournal/pub/644.htm>

First – describe your food in detail. This is important because the nutritional content of foods varies even between foods that are very similar, e.g. white bread vs. wholegrain bread or dairy spread vs. polyunsaturated spread.

Second – if your food product is made up of different ingredients, e.g. sandwiches, lasagne, the nutritional content will vary according to different recipe combinations. You need to find out what nutrients are present in the amount of each ingredient that makes up 100g or 100ml of your product (see egg sandwich example on page 33).

Note:

Nutrition and health claims should refer to the food ready for consumption, as according to the manufacturer's instructions.

Step 2. Find out the nutritional content of your food product

Information on the nutritional content of foods can be found by accessing:

- Food composition tables (make sure the data are suitable for use in Ireland)
- Nutritional information from ingredient suppliers

Using food composition tables

Food composition tables always give the nutrient information per 100g/100ml.

In Ireland, McCance and Widdowson's composition of foods integrated dataset (CoFIDs) is the accepted data source for food composition. There is a free version of this available online: (<https://www.gov.uk/government/publications/composition-of-foods-integrated-dataset-cofid>).

The information presented in food composition tables is quite complex. We encourage users to evaluate the accuracy, relevance and completeness of their results themselves and where necessary, seek appropriate expert advice.

Note:

There is a user-friendly food composition database available online that you can use to find out roughly what nutrients your food product contains. The U.S. Department of Agriculture (USDA) database is available at: <http://ndb.nal.usda.gov/>. Unfortunately, this will not give you information that is accurate enough for your Irish food product because it is an American food database¹. Nonetheless, information from the USDA database will give you some indication to help you decide if your food product has the potential to bear nutrition and health claims.

Important:

To ensure your product can really make a claim, the information you access from the USDA database must be validated by checking CoFIDs. This may require help from a dietitian/nutritionist with a recognised qualification. Nutrition and health claims for Irish foods or products made from Irish/European ingredients cannot be based on USDA food composition data.

Step 3. Identify what nutrition claims you can make on your food product

A full list of the nutrition claims permitted in Europe is outlined in the Annex of Regulation 1924/2006. There are specific conditions your food product has to meet in order to legally bear these permitted claims – these are referred to as 'conditions of use'. A summary of these nutrition claims and their conditions of use are displayed in this booklet on pages 6 and 7.

Nutrition claims on vitamins and minerals

In relation to claims on vitamins and minerals ('source of' or 'high in'), the required levels to make these claims are outlined on page 9.

Nutrition claims on protein, monounsaturated, polyunsaturated and unsaturated fat.

These nutrition claims require the use of a conversion factor. This is outlined in detail on page 8.

Practical examples on how to follow the step by step process to make permitted nutrition and health claims on food products are outlined in Annex 1 (pages 29 – 35)

¹ American foods can differ from European foods due to geographic location, animal husbandry, climate and mandatory and voluntary food fortification policies.

Listed below are the permitted nutrition claims with their conditions of use as detailed in the Annex of Regulation 1924/2006 (as amended). This list is on the Community Register of claims on the European Commission website. <http://ec.europa.eu/nuhclaims/>

Nutrition Claim	Condition of Use
Low energy	Product does not contain more than – 40 kcal (170 kJ)/100g for solids or 20 kcal (80 kJ)/100ml for liquids <i>Table-top sweeteners (which have equivalent sweetening properties to 6g of sucrose (approximately 1 teaspoon of sucrose providing 24kcal (100kJ)) can bear this claim if they contain no more than 4kcal (17kJ)/portion, which have equivalent sweetening properties to 6g of sucrose (approximately 1 teaspoon of sucrose providing 24kcal (100kJ))</i>
Energy-reduced	Energy value is reduced by at least 30% , with an indication of the characteristic(s) which make(s) the food reduced in its total energy value
Energy-free	Product does not contain more than 4kcal (17kJ)/100ml. <i>For table-top sweeteners the limit of 0.4kcal (1.7kJ)/portion, with equivalent sweetening properties to 6g of sucrose (approximately 1 teaspoon of sucrose), applies</i>
Low fat	Product contains no more than – 3g of fat per 100g for solids or 1.5g of fat per 100ml for liquids (1.8g of fat per 100ml for semi-skimmed milk)
Fat-free	Product contains no more than 0.5g of fat per 100g or 100ml Claims expressed as 'X% fat-free' are prohibited.
Low saturated fat	The sum of saturated fatty acids and <i>trans</i> -fatty acids in the product does not exceed 1.5g per 100g for solids or 0.75g per 100ml for liquids and in either case, the sum of saturated fatty acids and <i>trans</i> -fatty acids must not provide more than 10% of energy
Source of omega-3 fatty acids	The product contains: at least 0.3g alpha-linolenic acid per 100g and per 100kcal, or at least 40mg of the sum of eicosapentaenoic acid and docosahexaenoic acid per 100g and per 100kcal
High omega-3 fatty acids	The product contains: at least 0.6g alpha-linolenic acid per 100g and per 100kcal, or at least 80mg of the sum of eicosapentaenoic acid and docosahexaenoic acid per 100g and per 100kcal
High monounsaturated fat	At least 45% of the fatty acids present in the product derive from monounsaturated fat under the condition that monounsaturated fat provides more than 20% of energy of the product
High polyunsaturated fat	At least 45% of the fatty acids present in the product derive from polyunsaturated fat under the condition that polyunsaturated fat provides more than 20% of energy of the product
High unsaturated fat	At least 70% of the fatty acids present in the product derive from unsaturated fat under the condition that unsaturated fat provides more than 20% of energy of the product
Saturated fat-free	The sum of saturated fat and trans-fatty acids does not exceed 0.1g of saturated fat per 100g or 100ml
Low sugar	The product contains no more than – 5g of sugars per 100g for solids or 2.5g of sugars per 100ml for liquids
Sugar-free	Product contains no more than 0.5g of sugars per 100g or 100ml
With no added sugars	Product does not contain any added mono- or disaccharides or any other food used for its sweetening properties. If sugars are naturally present in the food , the following indication should also appear on the label: 'Contains naturally occurring sugars'
Low sodium/salt	Product contains no more than 0.12g of sodium , or 0.3g of salt , per 100g or per 100ml For waters other than natural mineral waters falling within the scope of Directive 80/777/EEC, this value should not exceed 2mg of sodium per 100ml
Very low sodium/salt	Product contains no more than 0.04g of sodium , or 0.1g of salt , per 100g or per 100ml This claim shall not be used for natural mineral waters and other waters.

Nutrition Claim	Condition of Use
Sodium-free/salt-free	Product contains no more than 0.005g of sodium, or 0.0125g of salt , per 100g
No added sodium/salt:	A claim stating that sodium/salt has not been added to a food and any claim likely to have the same meaning for the consumer may only be made where the product does not contain any added sodium/salt or any other ingredient containing added sodium/salt and the product contains no more than 0.12g sodium, or the equivalent value for salt , per 100g or 100ml
Source of fibre	Product contains at least 3g of fibre per 100g or at least 1.5g of fibre per 100kcal
High fibre	Product contains at least 6g of fibre per 100g or at least 3g of fibre per 100kcal
Source of protein	At least 12% of the energy value of the food is provided by protein
High protein	At least 20% of the energy value of the food is provided by protein
Source of [name of vitamin/s] and/or [name of mineral(s)]	The product contains at least a significant amount as defined in Annex XIII to Regulation EU No 1169/2011 (values are given on page 9) or An amount provided for by derogations granted according to Article 6 of Regulation (EC) No. 1925/2006 of the European Parliament and of the Council of 20 December 2006 on the addition of vitamins and minerals and of certain other substances to foods (note: the derogations referred to here have not been agreed yet)
High [name of vitamin/s] and/or [name of mineral(s)]	Where the product contains at least twice the value of 'source of [name of vitamin/s] and/or [name of mineral/s]' (values are given on page 9)
Contains [name of the nutrient or other substance]	A claim that a food 'contains' a nutrient or other substance (for which specific conditions are not laid down in Regulation 1924/2006), or any claim likely to have the same meaning as 'contains' for a consumer, may only be made where the product complies with Regulation 1924/2006, particularly Article 5. For vitamins and minerals, the conditions of the claim 'source of' apply
Increased [name of nutrient]	Product meets the conditions for the claim 'source of' and the increase in content is at least 30% compared to a similar product [name of nutrient, other than vitamins and minerals]
Light/Lite	Conditions as those set for the term ' reduced '; the claim shall also be accompanied by an indication of the characteristic(s) which make(s) the food 'light' or 'lite'
Naturally/Natural	Where a food naturally meets the condition(s) laid down in this Annex for the use of a nutritional claim, the term ' naturally/natural ' may be used as a prefix to the claim
Reduced [name of nutrient]	Where the reduction in content is at least 30% compared to a similar product , except for micronutrients (vitamins and minerals), where a 10% difference in the reference values as set in Regulation EU No 1169/2011 shall be acceptable, and for sodium, or the equivalent value for salt, where a 25% difference shall be acceptable
Reduced saturated fat	Where the sum of saturated fatty acids and of <i>trans</i> -fatty acids in the product is at least 30% less than in a similar product; and where the content in <i>trans</i> -fatty acids is equal to or less than in a similar product
Reduced sugars	Where the amount of energy in the product is equal to, or less than the amount of energy in a similar product

Comparative Claims

A comparison may only be made between foods of the same category, taking into consideration a range of foods from that category. The difference in the quantity of a nutrient and/or the energy value must be stated and the comparison must relate to the same quantity of food.

(Article 9 of Regulation 1924/2006)

When making a comparative claim about the presence of a vitamin or mineral, the product must contain a significant amount of that nutrient (see table on page 9 for significant amounts). For example, if a yogurt product in a 125g pot makes a comparative claim such as 'increased fibre', then the conditions of use for the claim 'increased' must be met. The fibre content of the yoghurt must be at least 30% higher compared to a similar 125g pot of yoghurt.

Nutrition Claims and Energy Conversion Factors

“source of protein”

“high protein”

“high monounsaturated fat”

“high polyunsaturated fat”

“high unsaturated fat”

To make these claims, a food must provide a minimum amount of energy from the specific nutrient (see pages 6 and 7 for the minimum amounts required to make these claims).

To verify the amount of energy provided by either protein or fat, the following conversion factors from Regulation No 1169/2011, as amended, are used.

Nutrient	Conversion Factor	Amount of Energy per 1g of Nutrient
Protein	4kcal/g 17kJ/g	1g protein x 4kcal = 4kcal per g protein
Fat (saturated, unsaturated, polyunsaturated and monounsaturated)	9kcal/g 37kJ/g	1g fat x 9kcal = 9kcal per g fat

Therefore

$$\% \text{ energy from the nutrient} = \frac{\text{Grams of nutrient per 100g of product} \times \text{Conversion factor for nutrient}}{\text{Total Energy per 100g of product}} \times \frac{100}{1}$$

The nutrition table below is for a product making a ‘**source of protein**’ claim. A ‘**source of protein**’ claim requires that **at least 12% of the energy** in the food is provided by protein.

Nutrition Information	Per 100g
Energy	1136kJ 268kcal
Fat of which saturates	2.3g 0.67g
Carbohydrate of which sugars	48.8g 41g
Protein	13g
Salt	0.425g

The calculation below uses the protein conversion factor of 4kcal/g to determine the amount of the energy from protein in the product.

$$\% \text{ energy from protein} = \frac{\text{Grams of protein per 100g of product} \times \text{Conversion factor for protein}}{\text{Total Energy per 100g}} \times \frac{100}{1}$$

$$\frac{13 \times 4}{268} \times \frac{100}{1} = \mathbf{19.4\%}$$

is the amount of energy from protein. Therefore the claim ‘**source of protein**’ can be used for this product.

Vitamins and Minerals

Daily Reference Intake (RI) values for vitamins and minerals are listed in the table below (Annex XIII of 1169/2011). These RI values previously known as Recommended Daily Allowances (RDAs), have not changed. RI values should be used on food labels. The minimum values of vitamins and minerals required to meet the conditions for ‘**source of**’ and ‘**high**’ claims in solids, liquids and beverages are listed below.

Table 1. Amount of vitamins and minerals required in solids, liquids and beverages for ‘source of’ and ‘high in’ claims.

Vitamin/mineral	Reference Intake (RI)	Solids (per 100g) Liquids* (per 100ml) Single-serve packs (solids, liquids, & beverages, per portion)		Beverages (per 100ml)	
		Claims that are a “Source of”	Claims that are “High”	Claims that are a “Source of”	Claims that are “High”
Vitamin A	800µg	120µg	240µg	60µg	120µg
Vitamin D	5µg	0.8µg	1.6µg	0.4µg	0.8µg
Vitamin E	12mg	1.8mg	3.6mg	0.9mg	1.8mg
Vitamin K	75µg	11.2µg	22.4µg	5.6µg	11.2µg
Vitamin C	80mg	12mg	24mg	6mg	12mg
Thiamin	1.1mg	0.2mg	0.4mg	0.1mg	0.2mg
Riboflavin	1.4mg	0.2mg	0.4mg	0.1mg	0.2mg
Niacin	16mg	2.4mg	4.8mg	1.2mg	2.4mg
Vitamin B ₆	1.4mg	0.2mg	0.4mg	0.1mg	0.2mg
Folic acid	200µg	30µg	60µg	15µg	30µg
Vitamin B ₁₂	2.5µg	0.4µg	0.8µg	0.2µg	0.4µg
Biotin	50µg	7.6µg	15.2µg	3.8µg	7.6µg
Pantothenic acid	6mg	1.0mg	2mg	0.5mg	1.0mg
Potassium	2000mg	300mg	600mg	150mg	300mg
Chloride	800mg	120mg	240mg	60mg	120mg
Calcium	800mg	120mg	240mg	60mg	120mg
Phosphorus	700mg	105mg	210mg	52.5mg	105mg
Magnesium	375mg	56.2mg	112.4mg	28.1mg	56.2mg
Iron	14mg	2.2mg	4.4mg	1.1mg	2.2mg
Zinc	10mg	1.6mg	3.2mg	0.8mg	1.6mg
Copper	1mg	0.2mg	0.4mg	0.1mg	0.2mg
Manganese	2mg	0.4mg	0.8mg	0.2mg	0.4mg
Fluoride	3.5mg	0.6mg	1.2mg	0.3mg	0.6mg
Selenium	55µg	8.2µg	16.4µg	4.1µg	8.2µg
Chromium	40µg	6µg	12µg	3µg	6µg
Molybdenum	50µg	7.6µg	15.2µg	3.8µg	7.6µg
Iodine	150µg	22.6µg	45.2µg	11.3µg	22.6µg

* Liquids other than beverages, e.g. oils

Note:

For solid and liquid products* to claim ‘source of’, there must be at least 15% of the RI in 100g/100ml*

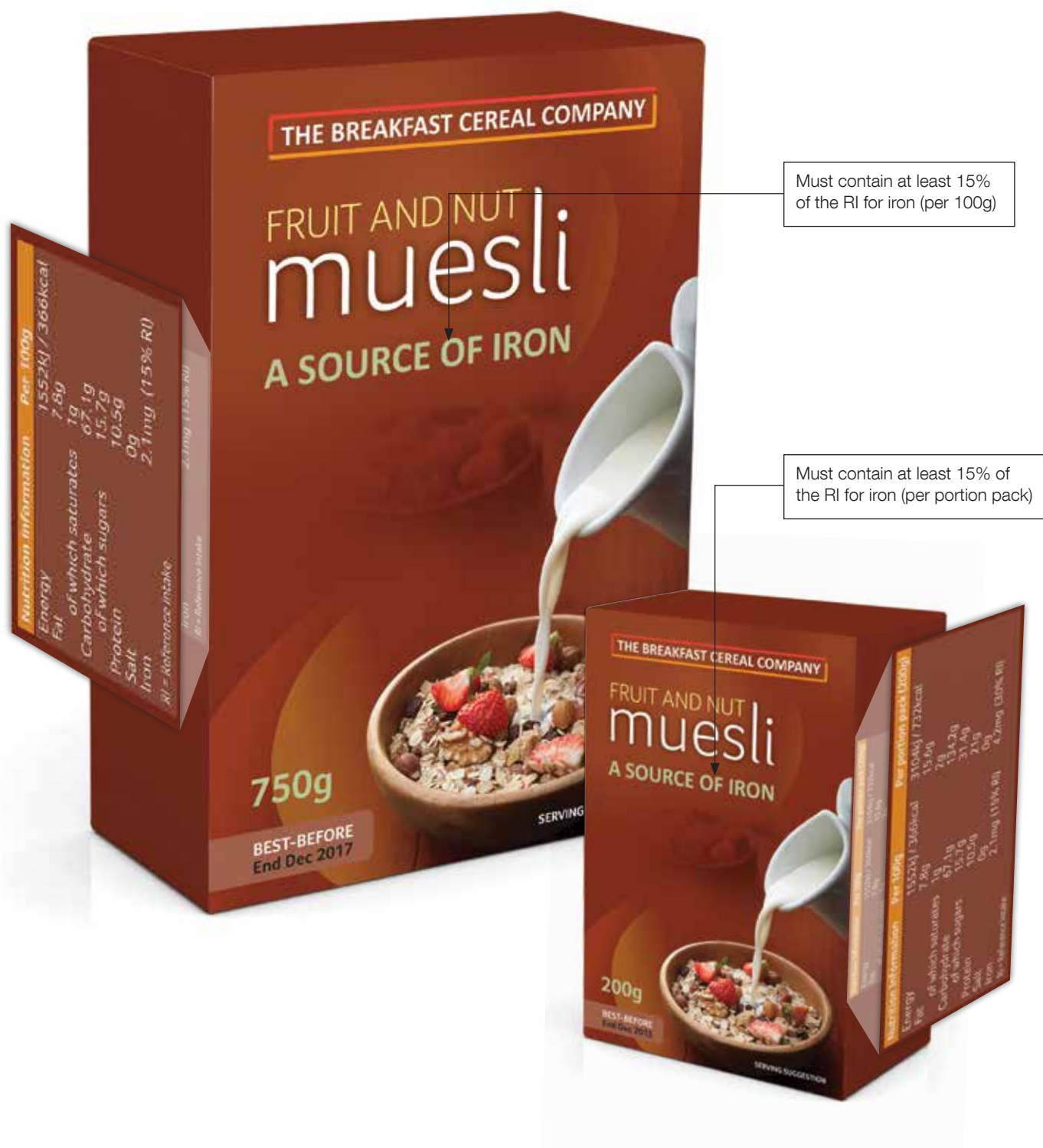
For beverages to claim ‘source of’, there must be at least 7.5% of the RI per 100ml*

For all products (solids, liquids & beverages) in single-serve portion packs, to claim ‘source of’ there must be at least 15% of the RI in the pack

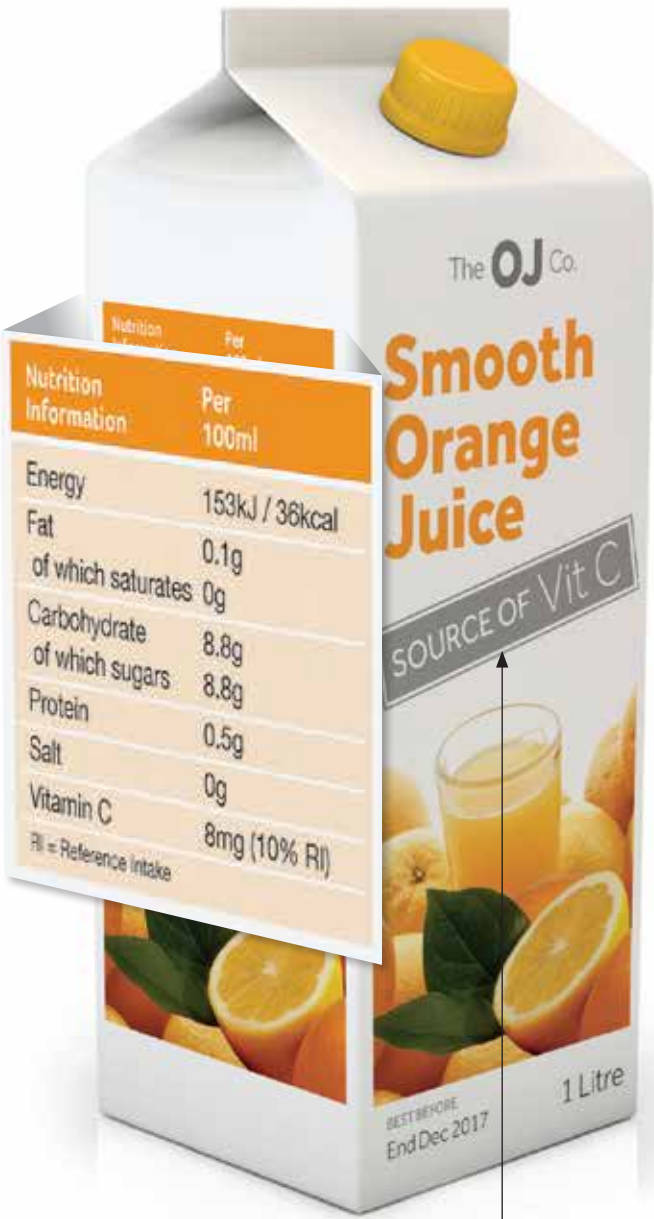
* These rules relate to full-sized product packs from which multiple servings can be taken.

Making 'source-of' Claims on Food Products

1. Solid food in full-sized pack and single-serve portion pack



2. Beverages in full-sized pack and single-serve portion pack



Must contain at least 7.5% of the RI for Vitamin C (per 100ml)

Reverse of pack

Nutrition Information	Per 100ml	Per portion pack (150ml)
Energy	153kJ / 36kcal	230kJ / 54kcal
Fat	0.1g	0.15g
of which saturates	Tr	Tr
Carbohydrate	8.8g	13.2g
of which sugars	8.8g	13.2g
Protein	0.5g	0.75g
Salt	0g	0g
Vitamin C	8mg (10% RI)	12mg (15% RI)

RI = Reference Intake



Must contain at least 15% of the RI for Vitamin C (per portion pack)

3. Liquids in full-sized pack and single-serve portion pack



Reverse of pack

Nutrition Information	Per 100ml	Per portion pack (40ml)
Energy	3969kJ / 899kcal	1588kJ / 360kcal
Fat	99.9g	39.96g
of which saturates	14.9g	5.96g
Carbohydrate	0g	0g
of which sugars	0g	0g
Protein	0g	0g
Salt	0g	0g
Vitamin E	4.5mg (38% RI)	1.8mg (15% RI)

RI = Reference Intake

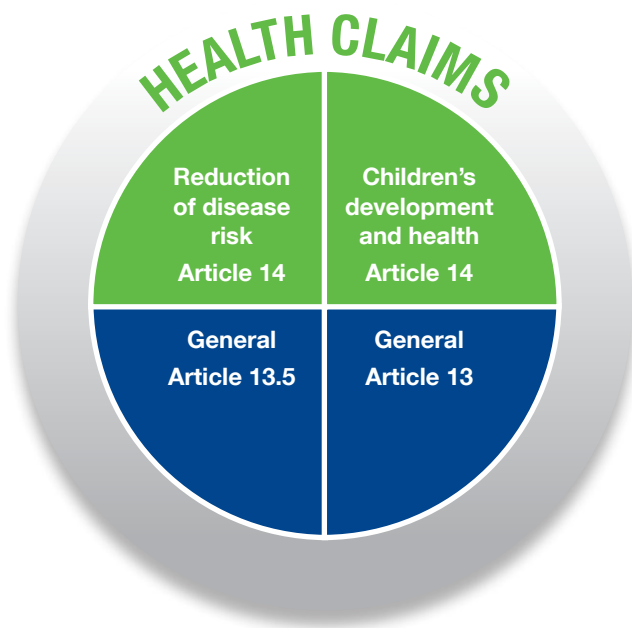
Must contain at least 15% of the RI for Vitamin E (per portion pack)

Health Claims

Regulation 1924/2006 on nutrition and health claims defines a **health claim** as:

'any claim that states, suggests or implies that a relationship exists between a food category, a food or one of its constituents and health.' e.g. this drink will help you feel more energetic/this food will help you concentrate etc.

There are four types of health claims.



Claim	Type of Claim
Article 14 health claims	Reduction of disease risk claims and
	Claims referring to children's development and health.
Article 13(5) health claims	Health claims other than disease risk reduction and children's development and health. These claims are based on newly developed scientific evidence and may include a request for the protection of proprietary data.
Article 13 health claims	Health claims other than disease risk reduction and children's development and health. Also known as 'General health claims', these claims relate to the effect of a substance on a body function.

Article 14 claims

‘Reduction of disease risk claim’ is defined as:

‘any health claim that states, suggests or implies that the consumption of a food category, a food or one of its constituents significantly reduces a risk factor in the development of a human disease.’

(Regulation 1924/2006)

‘Children’s development and health claims’ are defined as:

‘health claims solely referring to the development and health of children and where the science is only valid for children, e.g. calcium is good for children’s growth’.

and/or

‘health claims used on products intended exclusively for children, like follow on formulae, processed cereal-based foods and baby foods.’

‘Children’ means persons between the ages of 0 and 18 years.

Note that claims relating to health benefits to a foetus are also classed as ‘Children’s development and health claims’.

(EU guidance on the implementation of Regulation No 1924/2006 on nutrition and health claims made on foods conclusions of the standing committee on the food chain and animal health 14th December 2007)

The following health claims are not permitted:

- ✗ Claims that suggest that health could be affected by not consuming the food
- ✗ Claims which make reference to the rate or amount of weight loss
- ✗ Claims that make reference to recommendations of individual doctors or health professionals and other associations, not provided for in community or national rules

Health claims must include:

- ✓ A statement indicating the importance of a varied and balanced diet and a healthy lifestyle
- ✓ The quantity of the food and pattern of consumption required to obtain the claimed beneficial effect
- ✓ Where appropriate, a statement addressed to persons who should avoid using the food
- ✓ An appropriate warning for products that are likely to present a health risk if consumed to excess
- ✓ Other statements that are mandatory according to the conditions of the specific claim

The above information must be included in the labelling, or if no such labelling exists, in the presentation and advertising.

(Article 10 of Regulation 1924/2006)

How to find out if you can make a health claim on your food product

Step 1. Describe your food product

Follow the procedures for nutrition claims outlined on pages 6 and 7

Step 2. Find out the nutritional content of your food product.

Follow the procedures for nutrition claims outlined on pages 6 and 7

Step 3. Identify what nutrition claims you can make on your food product

Follow the procedures for nutrition claims outlined on pages 6 and 7

Step 4. Identify what health claims you can make on your food product

Now that you have identified the nutrition claims that are possible for your product, you can investigate what authorised health claims are permitted based on these nutrients. All types of authorised health claims (13.1, 13.5, 14.1a, 14.1b) are all listed in the Community Register of Claims for the EU. You can find out what health claims are authorised for your product by searching this register for claims relating to the nutrients you have identified for your product.

Each authorised health claim has specific 'conditions of use' and these are listed in the Community Register of Claims. You need to check that your food product satisfies the conditions of use for each claim in order to use it legally.

Practical examples on how to follow the step by step process to make permitted nutrition and health claims on food products are outlined in Annex 1 (pages 29 – 35)



Further Information on the Community Register of Claims

The Community Register of Claims is on the European Commission website. The website address and snapshot are given below

<http://ec.europa.eu/nuhclaims/>

The screenshot shows the 'EU Register on nutrition and health claims' website. On the left, there is a 'Select criteria' sidebar with filters for Claim status, Type of claim, EFSA Opinion reference, Legislation, and a search bar. The main content area displays a table of claims. The table has the following columns: Claim type, Nutrient, substance, food or food category, Claim, Conditions of use of the claim / Restrictions of use / Reasons for non-authorization, Health relationship, EFSA opinion reference / Journal reference, Commission Regulation, and Status. A sample entry for 'ORSALIT' is shown, indicating it is not authorized due to non-compliance with regulations.

Claim type	Nutrient, substance, food or food category	Claim	Conditions of use of the claim / Restrictions of use / Reasons for non-authorization	Health relationship	EFSA opinion reference / Journal reference	Commission Regulation	Status
Art. 13(1)	"Dietary food for special medical purposes - oral rehydrating solution with decreased osmolality composed according to WHO/UNICEF recommendations - ORSALIT. ORSALIT is available in following versions: - ORSALIT without flavor, - ORSALIT with banana	1. ORSALIT is used in all cases when dehydration may occur 2. ORSALIT is hypoosmolar, oral rehydrating solution composed according to WHO and UNICEF recommendations 3. ORSALIT helps to avoid	Non-compliance with the Regulation because on the basis of the scientific evidence assessed, this claimed effect attributes to this food the property of preventing,	Treatment of diarrhoea and/or vomiting	2011/9(6)/2228		Non-authorise

This register lists approved health claims and conditions for their use, as well as rejected health claims and the reasons for rejection. Authorised health claims must be filtered by the 'Claim Status' drop-down list shown in the photo above. It provides up-to-date information on the legal status of health claims. The process of evaluating health claims is ongoing in Europe and claims are added to the Register on an ongoing basis.

Health claims which are not on the authorised list **cannot** be used. There are some exceptions to this as some claims (mostly relating to botanical substances) are awaiting evaluation and are currently legal for use. Refer to the FSAI website for up to date information on the status of health claims.

Examples of Article 13 ‘general health’ claims and their conditions of use

‘Calcium is needed for the maintenance of normal teeth’

This claim on calcium can be made on any food/food supplement which is at least a ‘source of’ calcium. This means it must contain a ‘significant amount’ (see table on page 9 for significant amounts).

‘Water contributes to the maintenance of normal regulation of the body’s temperature’

This claim can be made only on water which complies with the Directive on the exploitation and marketing of natural mineral waters (2009/54/EC) and the Drinking Water Directive (98/83/EC). The product must clearly state that the effect is obtained when at least 2 litres of water (from all sources) is consumed per day.

‘Oat grain fibre contributes to an increase in faecal bulk’

This claim can be made on foods containing oat grain fibre as long as the product meets the conditions for the nutrition claim ‘High fibre’ (i.e. the product must contain 6g fibre per 100g or at least 3g fibre per 100kcal)

Wording of health claims

When wording health claims, food businesses should keep as close as possible to the authorised wording listed in the Community register. However, some flexibility is possible to help consumer understanding.

1) The adapted wording must have the same meaning to the consumer as the authorised wording and must not make the claim ‘stronger’ than the authorised claim

Examples:

Authorised wording: ‘*ALA* contributes to the maintenance of normal blood cholesterol levels’

Permitted adapted wording: ‘*Omega 3* contributes to the maintenance of normal blood cholesterol levels’

Authorised wording: ‘Selenium *contributes* to the normal function of the immune system’

Permitted adapted wording: ‘Selenium *supports* the normal function of the immune system’

Non-permitted adapted wording: ‘Selenium *optimises* the normal function of the immune system’

2) Use of the term ‘normal’

The term ‘normal’ appears in the authorised wording of many Article 13 health claims. It should be retained if the wording is being adapted, and should not be replaced by another term or removed.

Examples:

The claim ‘Calcium contributes to normal muscle function’ should not be reworded to ‘Calcium contributes to muscle function’, as this changes the meaning

3) Health claims should only be made for the nutrient, substance, food or food category for which they have been authorised and not for the product that contains them

Take as an example, the authorised health claim 'Iron contributes to the normal function of the immune system'. In relation to a food called 'Murphy's Milk' containing the relevant amount of iron, it would be acceptable to say:

'Iron contributes to the normal function of the immune system' or

'Murphy's milk contains iron which contributes to the normal function of the immune system'

but not:

'Murphy's milk contributes to the normal function of the immune system' since this does not make a clear link between the nutrient (iron) and the claimed effect

4) General, non-specific health claims

When reference is made to general, non-specific benefits of a nutrient or food for overall good health, it must be accompanied by a specific, authorised Article 13 or 14 health claim.*

For example, if a general claim like 'GOOD FOR YOUR SKIN' was made on the front of a food called 'Sheila's seaweed' (which is a source of iodine), it would be acceptable to present this as:

'GOOD FOR YOUR SKIN' – Iodine contributes to the maintenance of normal skin' or

'GOOD FOR YOUR SKIN' – Sheila's seaweed contains iodine which contributes to the maintenance of normal skin'

5) Reference to excerpts from EFSA opinions

The wording for each authorised health claim is provided in the EU register. EFSA opinions do not authorise wording for health claims. Use of phrases from an EFSA opinion on food products is not appropriate, as the phrase may not have the same meaning for the consumer as that of the authorised claim on the EU register.



* <http://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:32013D0063&qid=1408631024104&from=EN>

Nutrition Labelling Requirements under Regulation EU No 1169/2011 (FIC)

Nutrition labelling requirements:

- Information is expressed per 100g or per 100ml. In addition, the information may be given per serving as quantified on the label or per portion, provided that the number of portions contained in the package is stated
- Information provided relates to the foodstuff as sold. The information may relate to the product after preparation, provided that sufficient preparation instructions are given and the label clearly states that the information relates to the food as prepared for consumption
- Information must be presented together in one place in tabular form with the numbers aligned. Where there is insufficient space on the label, the information may be presented in linear form
- Information must be legible, indelible, in a conspicuous location
- Information must be in English (other languages including Irish may be used in addition to English)

All pre-packaged foods must provide nutrition labelling from 13th December 2016*. Nutrition information on foods bearing nutrition and/or health claims and foods to which vitamins and/or minerals have been added, must comply with FIC since 13th December 2014.

However, if such foods have been placed on the market prior to 13th December 2014, with labelling compliant with earlier rules, they may be marketed until stocks are exhausted.

Note:

Before 13th December 2016, the only foods which are required to have nutrition labelling are those bearing nutrition and health claims and foods to which vitamins and/or minerals have been added. However, some food businesses may voluntarily provide nutrition labelling on foods. Even in these cases, since 13th December 2014, the nutrition labelling must follow the format in FIC, and all other aspects of the label must also follow rules in FIC.

* Requirements for nutrition labelling do not apply to food supplements, natural mineral waters and foods specified in Annex V of FIC. They do apply to foods for particular nutritional uses, without prejudice to Directive 2009/39/EC.

Mandatory Nutrition Labelling

It is mandatory for certain information to appear in the table of nutrition information and it must appear in a specific order. Energy must be listed first in the table. Fat should be displayed directly after energy, followed by other nutrients as shown in table 1 below.

The amount of salt must be declared. A statement can be included that salt is exclusively from natural sources if no salt has been added. Salt is calculated by multiplying the sodium content by 2.5.

Where the amount of a nutrient is negligible, the nutrition declaration for the nutrient can be replaced with a statement such as 'contains negligible amount of...' in close proximity to the nutrient declaration.

The European Commission has produced a guidance document on the tolerances allowed for nutrient values declared on the label and indications of negligible amounts. This is available here

http://ec.europa.eu/food/safety/docs/labelling_nutrition-vitamins_minerals-guidance_tolerances_1212_en.pdf

Table 1: Mandatory nutrition declaration

	Per 100g/ml
Energy	kJ/kcal
Fat	g
of which saturates	g
Carbohydrate	g
of which sugars	g
Protein	g
Salt	g

The information in the nutrition table can be supplemented by the following nutrients: monounsaturates; polyunsaturates; polyols; starch; fibre; vitamins and minerals. The order of presentation is shown below:

- (a) Monounsaturates
- (b) Polyunsaturates
- (c) Polyols
- (d) Starch
- (e) Fibre
- (f) Vitamins and minerals (see page 9 for a list of which vitamins and minerals can be listed)

If you choose to supplement the required nutrition information with information on the above nutrients, there is a specific order you must follow in the table, as shown in Table 2.

Table 2: Mandatory nutrition declaration with supplementary nutrients

	Per 100g/ml
Energy	kJ/kcal
Fat	g
of which saturates	g
of which monounsaturates	g
of which polyunsaturates	g
Carbohydrate	g
of which sugars	g
of which polyols	g
of which starch	g
Fibre	g
Protein	g
Salt	g
Vitamins and Minerals	Units specified on page 10 & % RI Values

Green = Mandatory

Purple = Voluntary/Optional

Note:

Only the nutrients mandatorily required and the supplementary nutrients from the list above, i.e. (a) to (f) can be included in the nutrition table. **Other nutrients cannot be included in this table.**

If a claim is made on pack about a nutrient/substance that is not allowed to be listed in the nutrition table, e.g. Omega 3 fatty acids, then the amount of that nutrient/substance must be displayed in close proximity to the nutrition table (see example on page 26).

Reference Intakes (RI)

Where vitamins and minerals are declared in the nutrition table, the amount of each one must be declared per 100g or 100ml, **and** as a percentage of the reference intake (%RI). The reference intake values are outlined in Table 1 on page 9.

Along with the mandatory declaration listed above, the % Reference Intake (RI) values may also be provided on a voluntary basis for nutrients other than vitamins and minerals (i.e. energy, fat, saturates, carbohydrate, sugars, protein, salt). This optional declaration can be given per portion or per 100g or 100ml. The reference intakes for these nutrients are outlined in Table 3.

Table 3: Reference Intakes

Reference intakes	
Energy	8400kJ/2000kcal
Fat	70g
of which saturates	20g
Carbohydrate	260g
of which sugars	90g
Protein	50g
Salt	6g

See Table 4 for an example of a table with information on vitamins and minerals.

Table 4: Mandatory nutrition declaration with supplementary information on vitamins and minerals

	Per 100g/ml
Energy	kJ/kcal
Fat	g
of which saturates	g
Carbohydrate	g
of which sugars	g
Protein	g
Salt	g
Vitamin A	µg (%RI)
Vitamin C	mg (%RI)
Iron	mg (%RI)
Calcium	mg (%RI)

RI = Reference Intake

Per Portion/Consumption Unit

In addition to the mandatory nutrition declaration per 100g/ml, manufacturers may also declare the amount of nutrients per portion/consumption unit, provided that these are easily recognisable by the consumer. The label must also indicate the size of the portion/consumption unit and the number of portions/consumption units contained in the product.

It is the responsibility of the manufacturer to determine the size of the portion/consumption unit.

Examples of mandatory nutrition declaration with per portion/consumption unit information

Table 5a: Optimal per consumption unit information

	Per 100g/ml	Per Biscuit (10g)*
Energy	kJ/kcal	kJ/kcal
Fat	g	g
of which saturates	g	g
Carbohydrate	g	g
of which sugars	g	g
Protein	g	g
Salt	g	g

Green = Mandatory

Purple = Voluntary/Optional

*This pack contains 10 biscuits

Table 5b

	Per 100g/ml	Per Portion (2 biscuits / 20g)*
Energy	kJ/kcal	kJ/kcal
Fat	g	g
of which saturates	g	g
Carbohydrate	g	g
of which sugars	g	g
Protein	g	g
Salt	g	g

Green = Mandatory

Purple = Voluntary/Optional

*This pack contains 5 portions

Table 6: Mandatory nutrition declaration with supplementary information on vitamins and minerals

	Per 100g/ml
Energy	kJ/kcal
Fat	g
of which saturates	g
Carbohydrate	g
of which sugars	g
Protein	g
Salt	g
Vitamin A	µg (%RI)
Vitamin C	mg (%RI)
Iron	mg (%RI)
Calcium	mg (%RI)

See tables 7, 8 and 9 for examples of voluntary declarations.

Table 7: Mandatory nutrition declaration with voluntary % RI per 100g/ml

	Per 100g/ml	% RI Per 100g/ml
Energy	kJ/kcal	%
Fat	g	%
of which saturates	g	%
Carbohydrate	g	%
of which sugars	g	%
Protein	g	%
Salt	g	%

Green = Mandatory

Purple = Voluntary/Optional

Table 8: Mandatory nutrition declaration with voluntary portion information and % RI per 100g/ml

	Per 100g/ml	Per Biscuit (10g)*	% RI Per 100g/ml
Energy	kJ/kcal	kJ/kcal	%
Fat	g	g	%
of which saturates	g	g	%
Carbohydrate	g	g	%
of which sugars	g	g	%
Protein	g	g	%
Salt	g	g	%

*This pack contains 10 biscuits

Green = Mandatory

Purple = Voluntary/Optional

Table 9: Mandatory nutrition declaration with portion information and % RI values per 100g and per portion

	Per 100g/ml	Per Biscuit (10g)*	% RI Per 100g/ml**	% RI Per Biscuit
Energy	kJ/kcal	kJ/kcal	%	%
Fat	g	g	%	%
of which saturates	g	g	%	%
Carbohydrate	g	g	%	%
of which sugars	g	g	%	%
Protein	g	g	%	%
Salt	g	g	%	%

*This pack contains 10 biscuits

Green = Mandatory Purple = Voluntary/Optional

Font size

Regulation 1169/2011 has also introduced a minimum font size for all of the mandatory information and where nutrition information is declared on the label, it must also comply with this minimum font size. The mandatory information must appear on the label in characters using a font size where the x-height is equal to or greater than 1.2mm. This is covered in Annex IV of the Regulation.

Exemptions (Annex V of 1169/2011)

The following lists of foods are exempted from having to declare nutrition information:

- Unprocessed products that comprise a single ingredient or category of ingredients
- Processed products which the only processing they have been subjected to is maturing and that comprise a single ingredient or category of ingredients
- Waters intended for human consumption including those where the only added ingredients are carbon dioxide and/or flavourings
- A herb, a spice or mixtures thereof
- Salt and salt substitutes
- Table top sweeteners
- Products covered by Directive 1999/4/EC of the European Parliament and of the Council of 22 February 1999 relating to coffee extracts and chicory extracts, whole or milled coffee beans and whole or milled decaffeinated coffee beans
- Herbal and fruit infusions, tea, decaffeinated tea, instant or soluble tea or tea extract, decaffeinated instant or soluble tea or tea extract, which do not contain other added ingredients than flavourings which so not modify the nutritional value of the tea.
- Fermented vinegars and substitutes for vinegar, including those where the only added ingredients are flavourings
- Flavourings
- Food additives
- Processing aids
- Food enzymes
- Gelatine
- Jam setting compounds
- Yeast
- Chewing gums
- Food in packaging or containers the largest surface of which has an area of less than 25cm²
- Food, including handcrafted food, directly supplied by the manufacturer of small quantities of products to the final consumer or to local retail establishments directly supplying the final consumer

Front of Pack (FoP) Nutrition Labelling (Voluntary)

Once the table of mandatory nutrition information is given, values for energy **or** for energy, fat, saturates, sugar and salt can be repeated on the front of pack. This is voluntary.

If you choose to provide this repeat information, it must be in one of the following two formats:

1. Energy value alone

Energy must be given as kJ and kcal

or

2. Energy +4 (fat, saturates, sugars and salt)

Energy (kJ and kcal) plus amounts of fat, saturates, sugars and salt (in grams).

Expression of front of pack (FoP) information per 100g or per 100ml and/or per portion/consumption unit

Depending on which of the above two formats are used, the following specific rules apply to how the nutrition information can be displayed:

1. Energy value alone

You may display the energy value (kJ and kcal) per portion. However, you must also display the energy value per 100g/100ml.

or

2. Energy +4 (fat, saturates, sugars and salt)

The energy, fat, saturates, sugars and salt (in grams) may be given:

per 100g or 100mls

or

per portion

However, if you give the values per portion, you must also display energy per 100g/100ml. Values for energy, fat, saturates, sugars, and salt may also be expressed as a percentage of the reference intake (RI) values per 100g, 100ml or portion.

Where the % RI information is provided on a per portion basis only, the following statement will also be required (if it is not already elsewhere on the label) –

Reference intake of an average adult (8400kJ/2000kcal).



Sample Labels



Note:

Where a health claim is made in generic advertising (not linked to a food product).

There are special labelling rules for foods with added phytosterols/phytosterols and phytosterol/phytosterol esters (see FIC Annex III 5.1 for information).

Below is an example of a cooked beef product bearing a permitted general health claim



Below is an example of a food supplement bearing a permitted children's development and health claim



Note:

Specific food supplement labelling rules in Directive 2002/46 must be followed.

Annex 1. How I Can Make Permitted Nutrition and Health Claims on My Food Product – Practical Examples

1. Boiled Crab

Step 1 – Describe your food product

My food product is boiled crab meat.



Step 2 – Find out the nutritional content of your food product.

Accessing the free USDA database online at <http://ndb.nal.usda.gov/> the closest match to my food product is – **‘Crab, crustaceans, cooked in moist heat, meat only’**

This shows me that my food product can potentially make claims in relation to providing Protein, Riboflavin, Pantothenic Acid, Chloride, Phosphorus, Magnesium, Zinc, Copper and Selenium.

This product was not high in total fat, saturated fat, *trans* fat, sugar or salt so there are no concerns about nutrient profiles.

Therefore, it is worth proceeding to find out the exact nutritional composition of my food product using food composition tables suitable for Ireland (CoFIDs) available at <https://www.gov.uk/government/publications/composition-of-foods-integrated-dataset-cofid>.

Using CoFIDs nutrient composition data for my food product, I compare the levels per 100g with the required levels to make a nutrition claim.

CoFIDs composition tables show boiled crab meat (Food Code: 16-331) to contain the following nutrients in significant amounts.

Boiled Crab Meat (16-331)	
Nutrient	Amount per 100g
Protein	19.5g
Riboflavin	0.9mg
Pantothenic Acid	1.0mg
Chloride	640mg
Phosphorus	340mg
Magnesium	58mg
Zinc	5.5mg
Copper	1.8mg
Selenium	84µg

The product provides 535kJ/128kcal of energy per 100g.

Step 3 – Identify what nutrition claims you can make on your food product

I find from the list of nutrition claims (pages 6 and 7) I can make the following claims:

‘Source of’ several vitamins and minerals (after considering levels on page 9)

‘High protein’ (this required energy conversion calculations outlined on page 8)

All of these claims are shown below:

Macronutrient	Amount per 100g	Nutrition claim
Protein	19.5g (61% of energy from protein*)	High protein as protein supplies at least 20% of the energy value

* % energy from protein: $\frac{19.5 \times 4}{128} \times \frac{100}{1} = 61\%$

Micronutrient	Amount per 100g	‘Source of’	‘High in’
Riboflavin	0.9mg	✓	✓
Niacin	16mg	✓	✓
Pantothenic Acid	1.0mg	✓	✗
Chloride	640mg	✓	✓
Phosphorus	340mg	✓	✓
Magnesium	58mg	✓	✗
Zinc	5.5mg	✓	✓
Copper	1.8mg	✓	✓
Selenium	84µg	✓	✓

Step 4 – Identify what health claims you can make on your food product

I have identified that I can make nine nutrition claims on my food product.

I can now look up the Community Register of Claims to find out what authorised health claims are permitted based on these nutrients.

For this example I will outline some of the health claims that may be possible for my product because of its zinc content (please note there are several other claims that may be possible for this product based on the other eight nutrients it contains in significant amounts).

Product	Nutrient	Authorised health claims		
Boiled Crab Food Code: 16-331	Zinc	Zinc contributes to normal cognitive function	Zinc contributes to the maintenance of normal bones	Zinc contributes to the maintenance of normal vision

2. Natural yogurt made from semi-skim milk

Step 1 – Describe your food product

My food product is natural yogurt made from semi-skim milk.

Step 2 – Find out the nutritional content of your food product

Accessing the free USDA database online at <http://ndb.nal.usda.gov/> the closest match to my food product is **'Yogurt, plain, low fat'**.

This shows me that my food product can potentially make claims in relation to providing protein, reduced fat, calcium, phosphorus, riboflavin and vitamin B₁₂.

This product was not high in total fat, saturated fat, *trans* fat, sugar or salt so there are no concerns about nutrient profiles.

Therefore, it is worth proceeding to find out the exact nutritional composition of my food product using food composition tables suitable for Ireland (CoFIDs) available at <https://www.gov.uk/government/publications/composition-of-foods-integrated-dataset-cofid>.

Using CoFIDs nutrient composition data for my food product, I compare the levels per 100g with the required levels to make a nutrition claim.

CoFIDs show low-fat yogurt to contain the following nutrients in significant amounts:

Yogurt, low-fat, plain (12-379)	
Nutrient	Amount per 100g
Protein	4.8g
Fat	1.0g
Riboflavin	0.2mg
Chloride	235mg
Calcium	162mg
Phosphorus	143mg
Iodine	34µg

The product provides 239kJ/56kcal of energy per 100g.



Step 3 – Identify what nutrition claims you can make on your food product

I find from the list of nutrition claims (pages 6 and 7) I can make the following claims:

A 'low-fat' claim

'Source of' several vitamins and minerals (after considering levels on page 9)

'High protein' (this required energy conversion calculations outlined on page 8)

All of these claims are shown below:

Macronutrient	Amount per 100g	Nutrition claim
Protein	4.8g (34% of energy from protein*)	High in protein as protein supplies at least 20% of the energy value
Fat	1.0g	Low-fat as product contains less than 3g fat per 100g

* % energy from protein: $\frac{4.8 \times 4}{56} \times \frac{100}{1} = 34\%$

Micronutrient	Amount per 100g	'Source of'	'High in'
Riboflavin	0.2mg	✓	✗
Chloride	235mg	✓	✗
Calcium	162mg	✓	✗
Phosphorus	143mg	✓	✗
Iodine	34µg	✓	✗

Step 4 – Identify what health claims you can make on your food product

I have identified that I can make seven nutrition claims on my food product.

I can now look up the Community Register of Claims to find out what authorised health claims are permitted, based on these nutrients.

For this example, I will outline some of the health claims that may be possible for my product because of its calcium content (please note there are several other claims that may be possible for this product based on the other six nutrients it contains in significant amounts).

Product	Nutrient	Authorised health claims		
Low-fat, plain yogurt (12-379)	Calcium	Calcium is needed for the maintenance of normal bones	Calcium contributes to normal muscle function	Calcium contributes to normal energy-yielding metabolism

3. Egg Sandwich

Step 1 – Describe your food product

My food product is made up from two slices of wholemeal bread (64g), low saturated fat spread (14g) and one egg (58g).



Step 2 – Find out the nutritional content of your food product

Accessing the free USDA database online at <http://ndb.nal.usda.gov/> the closest matches to my ingredients were; bread, wheat bran, margarine spread, egg, whole, raw, fresh.

This shows me that my food product can potentially make claims in relation to providing Protein, Fibre, Vitamin E, Folic Acid, Biotin, Chloride and Phosphorus.

This product was not high in total fat, saturated fat, *trans* fat, sugar or salt so there are no concerns about nutrient profiles.

Therefore, it is worth proceeding to find out the exact nutritional composition of my food product using food composition tables suitable for Ireland (CoFIDs) available at <https://www.gov.uk/government/publications/composition-of-foods-integrated-dataset-cofid>.

Using CoFIDs nutrient composition data for my food product, I compare the levels per 100g with the required levels to make a nutrition claim.

CoFIDs composition tables show the above components of the egg sandwich to contain the following nutrients in significant amounts:

Egg Sandwich (11-476, 12-806, 17-551)					
Nutrient	Amount of nutrient in 2 slices of wholemeal Bread (72g)	Amount of nutrient in 1 egg (58g)	Amount of nutrient in 14g of low saturated fat spread	Amount of nutrient in sandwich (144g)	Amount of nutrient in sandwich per 100g
Protein	6.8g	7.3g	0.1g	14.2g	9.9g
Fibre	5.0g	0g	0g	5.0g	3.5g
Vitamin E	0.2mg	0.6mg	5.3mg	6.1mg	4.2mg
Folic Acid	28.8µg	22.6µg	0µg	51.4µg	35.7µg
Biotin	4.5µg	9.3µg	0µg	13.8µg	9.6µg
Chloride	576mg	93mg	168mg	837mg	581.3mg
Phosphorus	145.4mg	116mg	0mg	261.4mg	181.5mg

The sandwich provides 956kJ/228kcal of energy per 100g.

Step 3 – Identify what nutrition claims you can make on your food product

I find from the list of nutrition claims (pages 6 and 7) I can make the following claims:

A 'high fibre' claim

'Source of' several vitamins and minerals (after considering levels on page 9)

All of these claims are shown below:

Nutrient	Amount in sandwich per 100g	Nutrition claim
Protein	9.9g (17.4% energy from protein*)	Source of protein as protein supplies at least 12% of the energy value
Fibre	3.5g	Source of fibre as contains at least 3g fibre per 100g or product

* % energy from protein: $\frac{9.9 \times 4}{228} \times \frac{100}{1} = 17.4\%$

Using the information from the table on page 9, the following permitted micronutrient nutrition claims can be identified.

Micronutrient	Total amount in sandwich per 100g	'Source of'	'High in'
Vitamin E	4.2mg	✓	✓
Folic Acid	35.7µg	✓	✗
Biotin	9.6µg	✓	✗
Chloride	581.3mg	✓	✓
Phosphorus	181.5mg	✓	✗

Step 4 – Identify what health claims you can make on your food product

I have identified that I can make six nutrition claims on my food product.

I can now look up the Community Register of Claims to find out what authorised health claims are permitted based on these nutrients.

For this example I will outline some of the health claims that may be possible for my product because of its vitamin E content (please note there are several other claims that may be possible for this product based on the other five nutrients it contains in significant amounts).

Product	Nutrient	Authorised health claims
Egg sandwich with wholemeal bread and polyunsaturated spread Food Codes: 11-476, 12-806, 17-551	Vitamin E	Vitamin E contributes to the protection of cells from oxidative stress

4. Vitamin D Food Supplement

Step 1 – Describe your food product

My food product is a food supplement in capsule form containing 5µg of vitamin D (in form D3 or cholecalciferol) per capsule.



Step 2 – Find out the nutritional content of your food product

I already know that my product provides 5µg of vitamin D (as cholecalciferol or D3) per capsule. One capsule is the daily serving size of my product. I know the exact Vitamin D content because I formulated my product to provide a specific amount of vitamin D.

Nutrient	Amount per capsule	%NRV
Vitamin D (D ₃ ; cholecalciferol)	5µg	100%

Step 3 – Identify what nutrition claims you can make on your food product

I find from the list of nutrition claims (pages 6 and 7) I can make the following claims:

Micronutrient	Amount per capsule	'Source of' Vitamin D	'High in' Vitamin D
Vitamin D (D ₃ ; cholecalciferol)	5µg	✓	✓

Step 4 – Identify what health claims you can make on your food product

I have identified that I can make a nutrition claim on my food product.

I can now look up the Community Register of Claims to find out what authorised health claims are permitted based on this nutrient.

For this example I will outline all of the health claims that may be possible for my product because of its Vitamin D content (please note there are no other claims possible for this product as this product only contains Vitamin D).

Product	Nutrient	Authorised health claims		
Vitamin D Food Supplement	Vitamin D (D ₃ ; cholecalciferol)	Vitamin D has a role in the process of cell division	Vitamin D contributes to normal blood calcium levels	Vitamin D contributes to the maintenance of normal bones
		Vitamin D contributes to the maintenance of normal muscle function	Vitamin D contributes to the maintenance of normal teeth	Vitamin D contributes to the normal function of the immune system
		Vitamin D contributes to normal absorption/ utilisation of calcium and phosphorus	Vitamin D is needed for normal growth and development of bone in children (Art. 14(1)(b) children's health and development)	

Notes

High in Vitamin C Rich in calcium Contains omega 3 With no added sugars Fat-free Cholesterol free Low energy Energy-reduced Energy-free Low fat Fat-free Low saturated fat Source of omega-3 fatty acids High omega-3 fatty acids High monounsaturated fat High polyunsaturated fat High unsaturated fat Saturated fat-free Low sugars Sugars-free With no added sugars Low sodium/salt Very low sodium/salt Sodium-free/salt-free Source of fibre High fibre Source of protein High protein Source of vitamins and minerals Contains nutrients Increased nutrients Increased nutrients Light % RDA Natural High in Vitamin C Rich in calcium Contains omega 3 With no added sugars Fat-free Cholesterol free Low energy Energy-reduced Energy-free Low fat Fat-free Low saturated fat Source of omega-3 fatty acids High omega-3 fatty acids High monounsaturated fat High polyunsaturated fat High unsaturated fat Saturated fat-free Low sugars Sugars-free With no added sugars Low sodium/salt Very low sodium/salt Sodium-free/salt-free Source of fibre High fibre Source of protein High protein Source of vitamins and



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ISBN: 1-904465-69-2